CHAPTER 6 BULK REGULATIONS

Section 13W-6-1 Purpose

The purpose of this Chapter is to indicate the requirements for building location and bulk in both residential and nonresidential developments. The provisions of this Chapter interact closely with the provisions of Chapter 5, Density and Intensity Regulations.

Section 13W-6-2 How to Use this Chapter

This Chapter contains the standards which determine the location and height of buildings on any given site. Prior to using the provisions of this Chapter to determine the potential layout of a given project, the recommendations provided below should be reviewed.

This Chapter recognizes inherent differences between residential and nonresidential projects, and thus regulates their development in slightly different manners. The description of the process addressing residential property in Subsections (a) and (b) below, refers to the requirements of Section 13W-6-3, Residential Bulk Standards. The description of the process addressing nonresidential property in Subsections (a) and (c) below, refers to the requirements of Section 13W-6-4, Nonresidential Bulk Standards.

(a) **For Both Residential, and Nonresidential, Development**

(1) **Identify the Zoning District and Development Option to Govern Development of the Subject Property**

For buildable lots, the Official Extraterritorial Zoning Map should be consulted to determine the zoning of the subject property. For proposed developments, the operations required in Chapter 13W-5 should be performed in order to identify the applicable zoning district and development option. Section 13W-5-6 contains a detailed step-by-step description of the recommended procedure for determining the applicable zoning district and development option.

(2) **Note the Identified Zoning District and Development Option Applicable to the Subject Property**

The applicable zoning district and development option identified for the subject property per Subsection (1), above, should be noted. The development option for residential development determines the Minimum Lot Area (MLA) permitted within the development. This is the key item of information for determining residential bulk regulations. The development option for nonresidential development determines the Maximum Number of Floors (#F) permitted within the development. This is the key item of information for determining nonresidential bulk regulations.

(b) **For Residential Development**

For Steps (1) and (2), see (a), above.

(3) **Determine the Type(s) of Dwelling Unit to be Used**

Data for residential bulk standards are presented in a series of illustrations in Section 13W-6-3, with each illustration pertaining to a specific dwelling unit type and its minimum lot size. The type(s) of dwelling unit(s) identified for use in Subsection (1), above, should be used to identify the pertinent subsections of Section 13W-6-3.

(4) **Identify the Bulk Standards for Each Dwelling Unit Type**

Each page of Section 13W-6-3 contains information for all bulk standards applicable to each dwelling unit type. All residential development within a proposed project must conform to the standards of Section 13W-6-3, unless a variance is granted in accordance with Section 13W-11-9 of this Article.

(c) **For Nonresidential Development**

For Steps (1) and (2), see (a), above.

(3) **Determine the Type(s) of Development Options to be Used**

Data for all nonresidential bulk standards are presented in Table 13W-6-4, with each row of the Table pertaining to a specific zoning district and development option. The type(s) of development option(s) identified for use in Subsection (1), above, should be used to identify the pertinent portions of Section 13W-6-4.

(4) **Identify the Bulk Standards for Each Development Option**

Each row of Table 13W-6-4 contains information for all bulk standards applicable to each development option. All nonresidential development within a proposed project must conform to the standards of Section 13W-6-4, unless a variance is granted in accordance with Section 13W-11-9 of this Article.

RESERVED

Section 13W-6-3 Residential Bulk Standards

All residential lots created under the provisions of this Article shall comply with the standards of this Section. These standards are related to the type of dwelling unit used, rather than to a specific zoning district. Table 13W-4-3 and Table 13W-5-4 relate each dwelling unit type to each zoning district and development option.

(a) **Single-Family Detached House 1,524,600 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence which is built in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

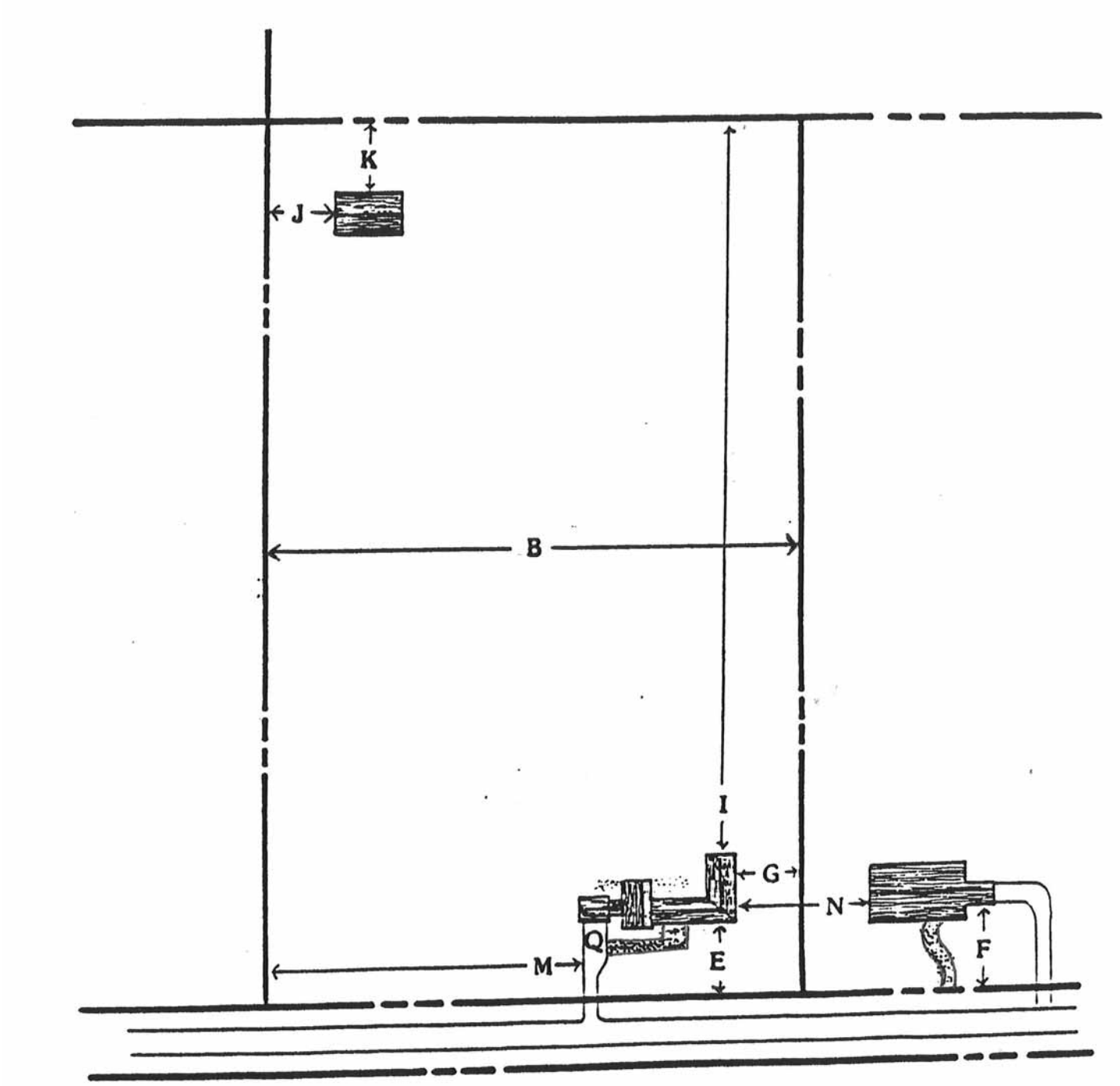
This dwelling unit type may be located as a:

Use Permitted by Right in: (AG-35ac) (UR-12) (MR-8) (SR-4) (ER-1) (CR-5ac)

Bulk Standards

A: Minimum Lot Area 1,524,600 square feet (35 acres)
B: Minimum Lot Width 500 feet
C: Maximum Floor Area Ratio (FAR) .02
D: Minimum Landscape Surface Ratio (LSR) .90
Minimum Setbacks:
E: Front or Street Side Lot Line to House 50 feet
F: Front or Street Side Lot Line to Attached Garage 50 feet
G: Side Lot Line to House or Attached Garage 100 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 200 ft.
I: Rear Lot Line to House or Attached Garage 100 feet
J: Side Lot Line to Accessory Structure 100 feet
K: Rear Lot Line to Accessory Structure 100 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 80 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 25 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, and all designated parking surfaces):
4 spaces if located on street with standard pavement width
8 spaces if located on street with reduced pavement width
R: Maximum Area of Accessory Structure: 2,000 square feet; up to 5,000 square feet by CUP

SINGLE-FAMILY DETACHED HOUSE -- 1,524,600 square foot lot



Section 13W-6-3 (continued)

(b) **Single-Family Detached House 175,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

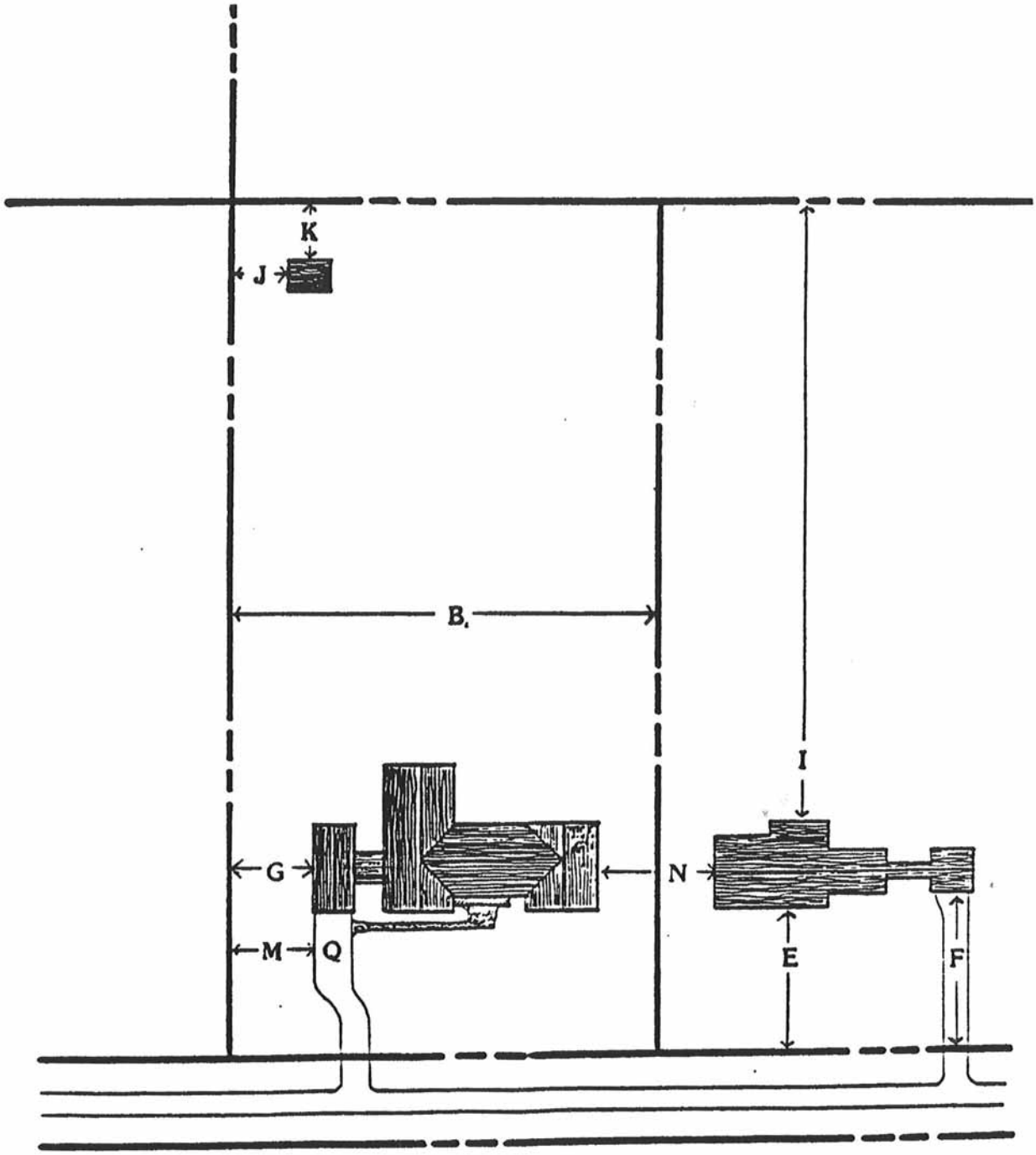
This dwelling unit type may be located as a:

Use Permitted by Right in: (CR-5ac), (ER-1), (SR-4), (MR-8), (UR-12)
Use " as Conditional Use in: Equestrian Development in (CR-5ac)

Bulk Standards

A: Minimum Lot Area 175,000 square feet
B: Minimum Lot Width 200 feet
C: Maximum Floor Area Ratio (FAR) .06
D: Minimum Landscape Surface Ratio (LSR) .85
Minimum Setbacks:
E: Front or Street Side Lot Line to House 50 feet
F: Front or Street Side Lot Line to Attached Garage 50 feet
G: Side Lot Line to House or Attached Garage 40 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 100 ft.
I: Rear Lot Line to House or Attached Garage 100 feet
J: Side Lot Line to Accessory Structure 40 feet
K: Rear Lot Line to Accessory Structure 40 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 80 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 25 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, and all designated parking surfaces):
4 spaces if located on street with standard pavement width
8 spaces if located on street with reduced pavement width
R: Maximum Area of Accessory Structure: 2,000 square feet; up to 5,000 square feet by CUP

SINGLE-FAMILY DETACHED HOUSE -- 175,000 square foot lot



Section 13W-6-3 (continued)

(c) **Single-Family Detached House 130,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

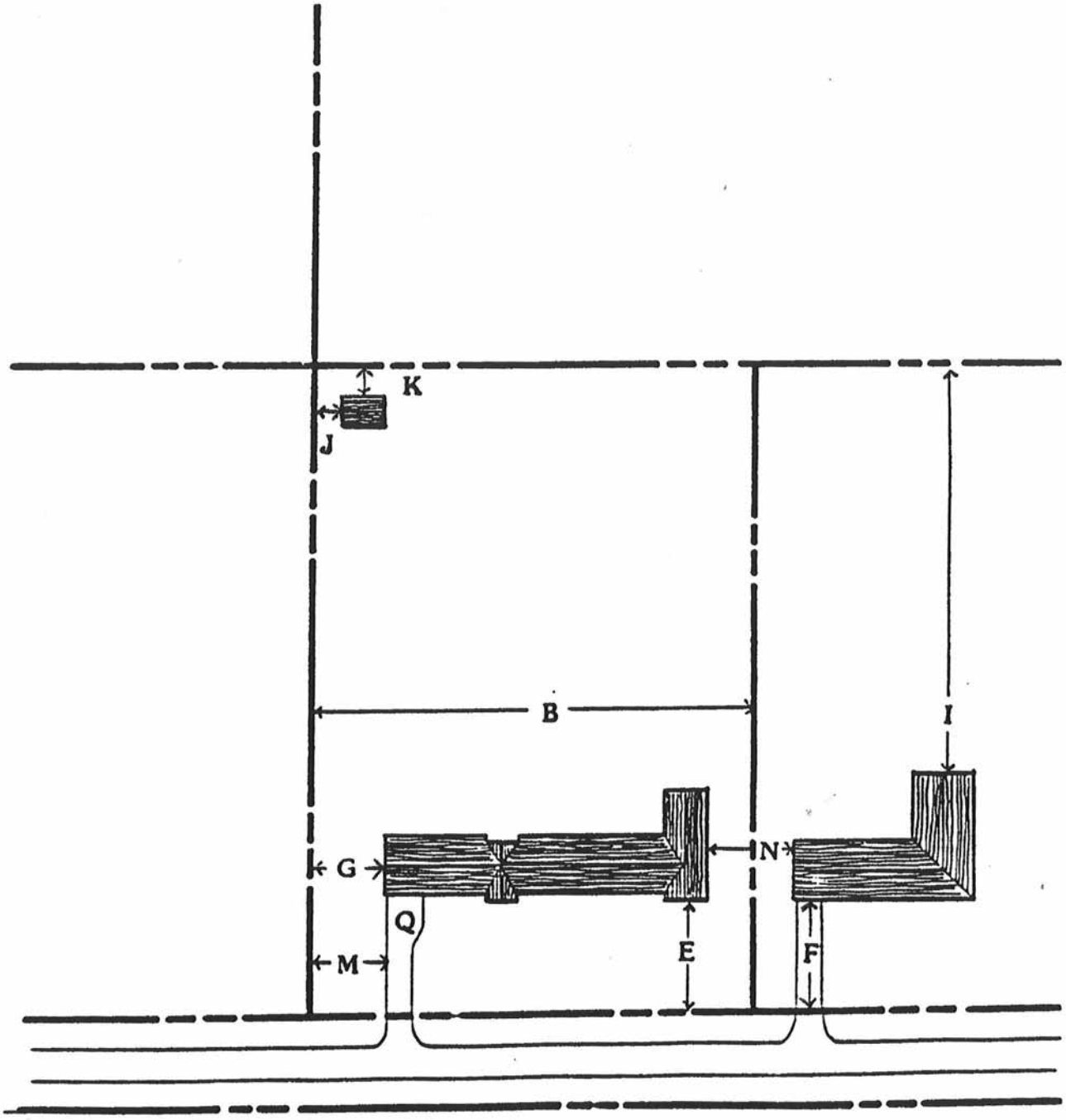
This dwelling unit type may be located as a:

Use Permitted by Right in: (CR-5ac) (ER-1), (SR-4), (MR-8), (UR-12)

Bulk Standards

A: Minimum Lot Area 130,000 square feet
B: Minimum Lot Width 175 feet
C: Maximum Floor Area Ratio (FAR) .07
D: Minimum Landscape Surface Ratio (LSR) .85
Minimum Setbacks:
E: Front or Street Side Lot Line to House 50 feet
F: Front or Street Side Lot Line to Attached Garage 50 feet
G: Side Lot Line to House or Attached Garage 30 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 80 ft.
I: Rear Lot Line to House or Attached Garage 80 feet
J: Side Lot Line to Accessory Structure 20 feet
K: Rear Lot Line to Accessory Structure 20 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 60 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 25 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, and all designated parking surfaces):
4 spaces if located on street with standard pavement width
8 spaces if located on street with reduced pavement width
R: Maximum Area of Accessory Structure: 1,500 square feet; up to 3,000 square feet by CUP

SINGLE-FAMILY DETACHED HOUSE -- 130,000 square foot lot



Section 13W-6-3 (continued)

(d) **Single-Family Detached House 80,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

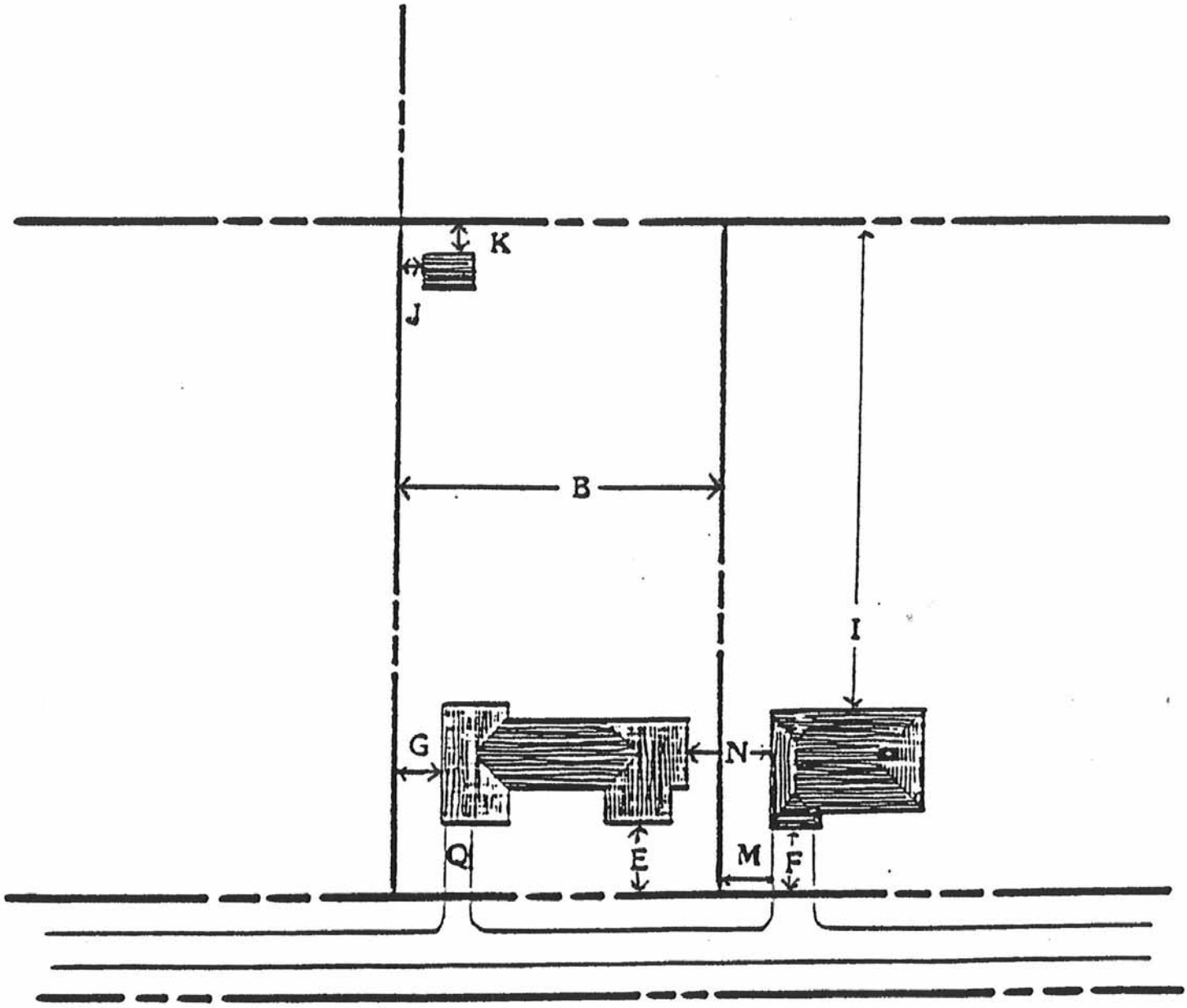
This dwelling unit type may be located as a:

Use Permitted by Right in: (ER-1), (SR-4), (MR-8), (UR-12)
Use " as Conditional Use in: (CR-5ac)

Bulk Standards

A: Minimum Lot Area 80,000 square feet
B: Minimum Lot Width 150 feet
C: Maximum Floor Area Ratio (FAR) .10
D: Minimum Landscape Surface Ratio (LSR) .80
Minimum Setbacks:
E: Front or Street Side Lot Line to House 50 feet
F: Front or Street Side Lot Line to Attached Garage 50 feet
G: Side Lot Line to House or Attached Garage 20 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 50 ft.
I: Rear Lot Line to House or Attached Garage 50 feet
J: Side Lot Line to Accessory Structure 15 feet
K: Rear Lot Line to Accessory Structure 15 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 40 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 25 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, and all designated parking surfaces):
4 spaces if located on street with standard pavement width
6 spaces if located on street with reduced pavement width
R: Maximum Area of Accessory Structure: 1,000 square feet; up to 2,000 square feet by CUP

SINGLE-FAMILY DETACHED HOUSE -- 80,000 square foot lot



Section 13W-6-3 (continued)

(e) **Single-Family Detached House 40,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into two or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

This dwelling unit type may be located as a:

Use Permitted by Right in: (ER-1), (SR-4), (MR-8), (UR-12)
Use " as Conditional Use in: (CR-5ac), (AG-35ac)
Conditional Use Regulations {AG-35ac}

i. Residence must be existing on the parcel prior to the adoption of the Sun Prairie Zoning Regulations - Town of Windsor ETJ Area (7-1-93)
ii. The remaining property, if less than 70 acres, will be deed restricted to allow only agricultural and open space land uses.
iii. Shall comply with Section 13W-11-5, standards and procedures applicable to all conditional uses.

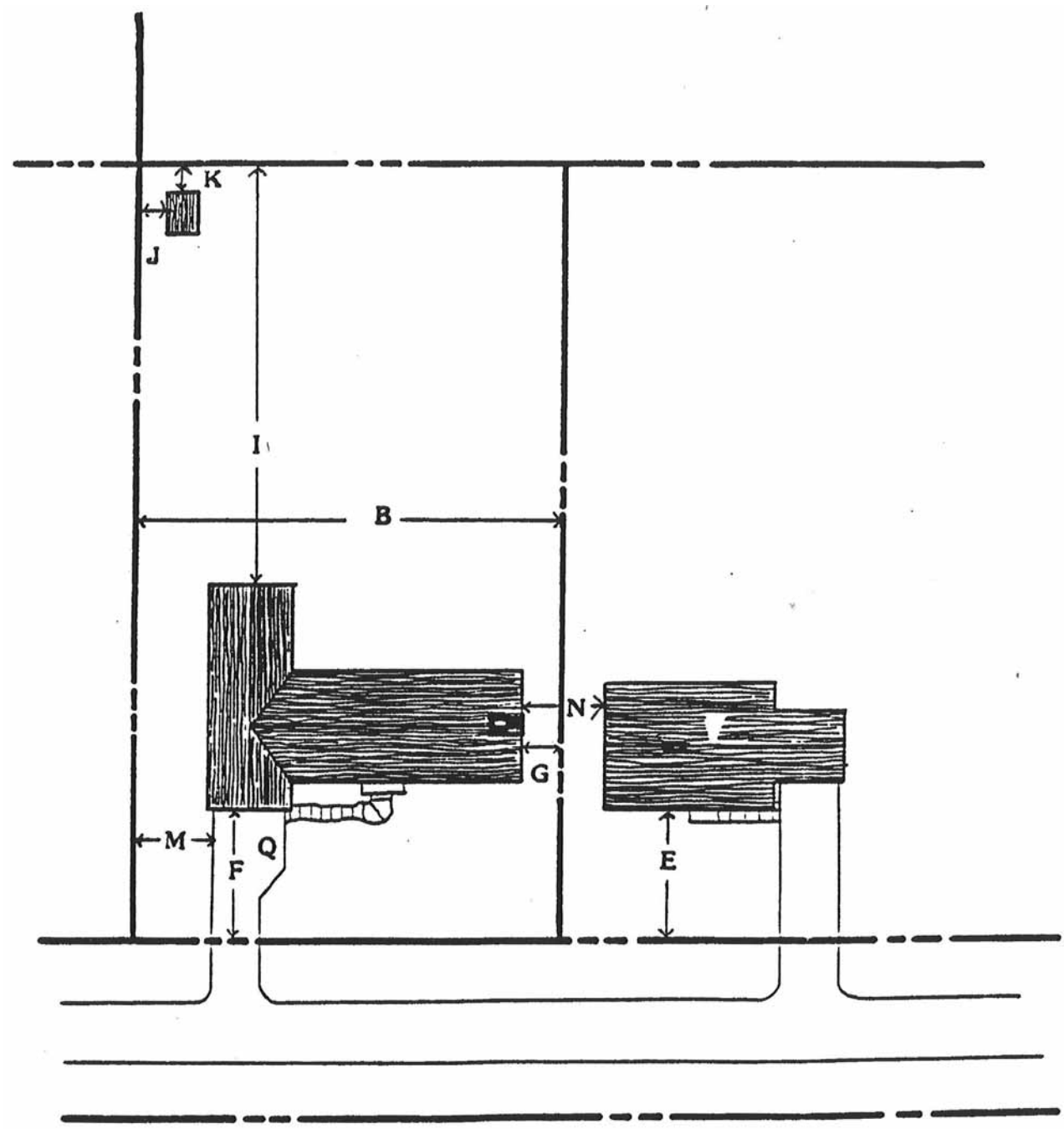
Bulk Standards

A: Minimum Lot Area 40,000 square feet
B: Minimum Lot Width 130 feet
C: Maximum Floor Area Ratio (FAR) .15
D: Minimum Landscape Surface Ratio (LSR) .75

Minimum Setbacks:

E: Front or Street Side Lot Line to House 50' from arterial street
45' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 50' from art.
45' from coll. or local
G: Side Lot Line to House or Attached Garage 15 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 40 ft.
I: Rear Lot Line to House or Attached Garage 45 feet
J: Side Lot Line to Accessory Structure 10 feet
K: Rear Lot Line to Accessory Structure 10 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 30 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 25 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, and all designated parking surfaces):
4 spaces if located on street with standard pavement width
6 spaces if located on street with reduced pavement width
R: Maximum Area of Accessory Structure: 1,000 square feet; up to 2,000 square feet by CUP

SINGLE-FAMILY DETACHED HOUSE -- 40,000 square foot lot



Section 13W-6-3 (continued)

(f) **Single-Family Detached House 30,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

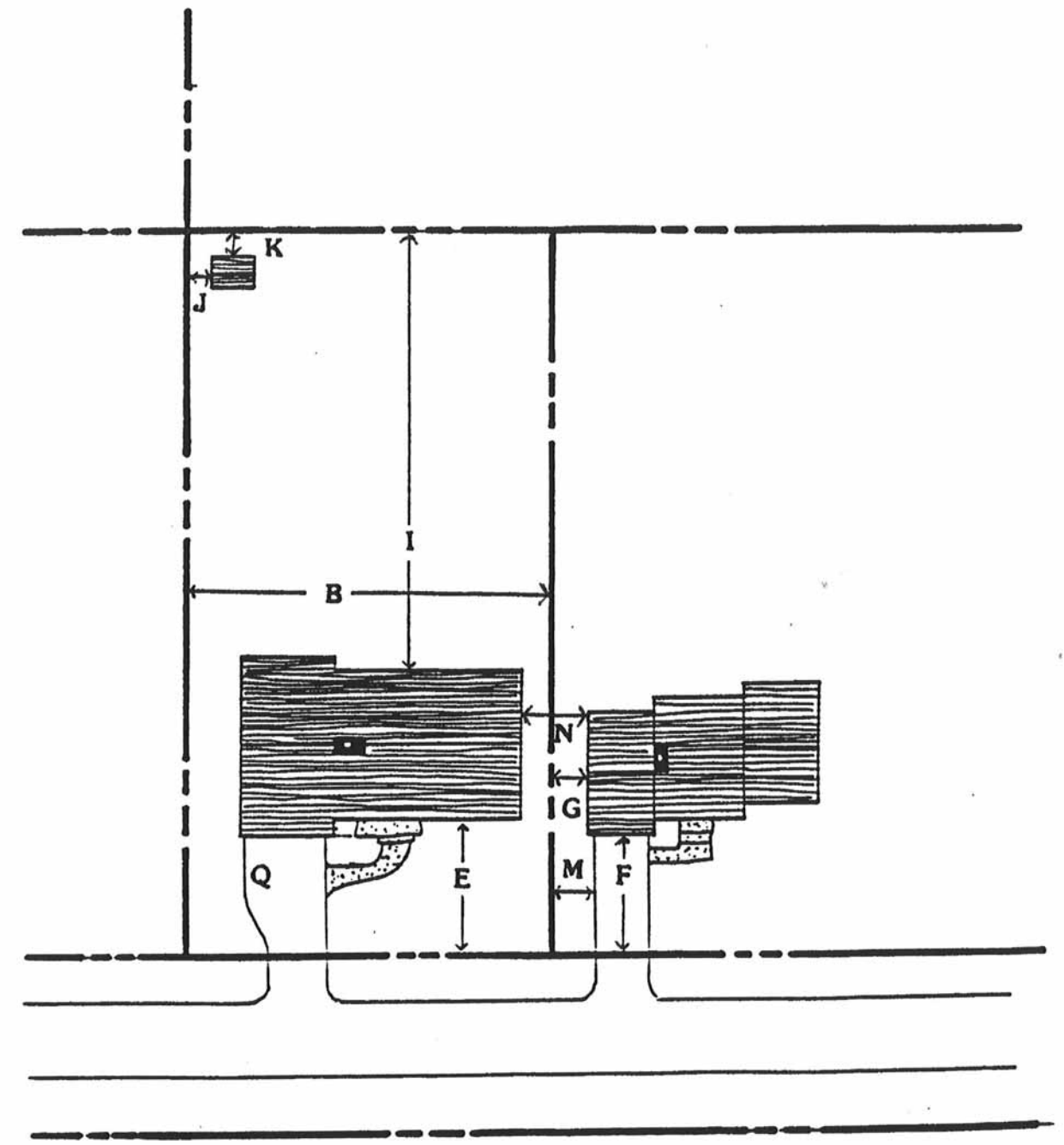
This dwelling unit type may be located as a:

Use Permitted by Right in: (ER-1) (SR-4), (MR-8), (UR-12)

Bulk Standards

A: Minimum Lot Area 30,000 square feet
B: Minimum Lot Width 110 feet
C: Maximum Floor Area Ratio (FAR) .17
D: Minimum Landscape Surface Ratio (LSR) .70
Minimum Setbacks:
E: Front or Street Side Lot Line to House 50' from arterial street
40' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 50' from art.
40' from coll. or local
G: Side Lot Line to House or Attached Garage 12 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 30 ft.
I: Rear Lot Line to House or Attached Garage 40 feet
J: Side Lot Line to Accessory Structure 8 feet
K: Rear Lot Line to Accessory Structure 8 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 24 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 4
R: Maximum Area of Accessory Structure: 1,000 square feet

SINGLE-FAMILY DETACHED HOUSE -- 30,000 square foot lot



Section 13W-6-3 (continued)

(g) **Single-Family Detached House 20,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

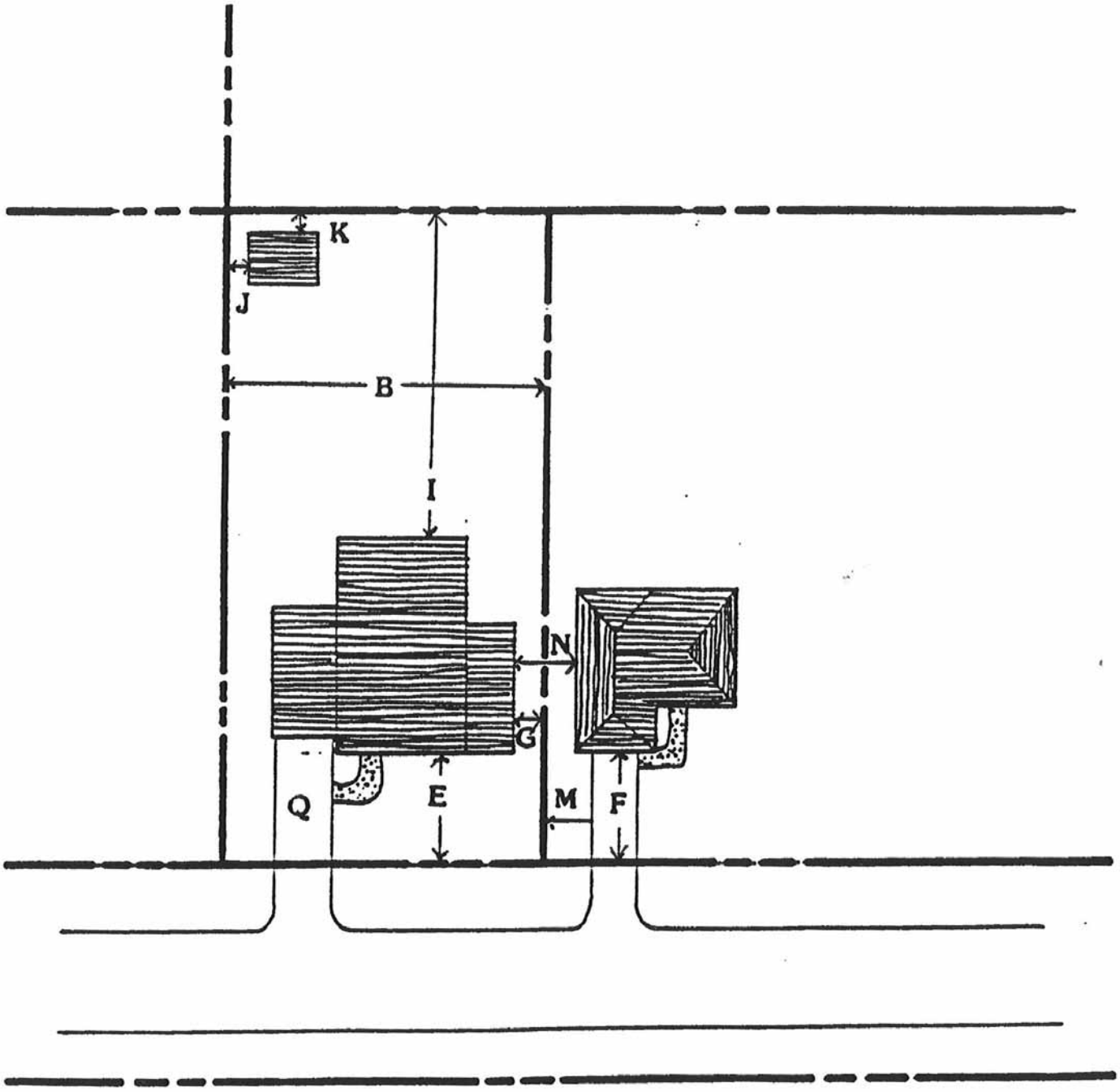
This dwelling unit type may be located as a:

Use Permitted by Right in: (SR-4), (MR-8), (UR-12)
Use " as Conditional Use in: (ER-1)

Bulk Standards

A: Minimum Lot Area 20,000 square feet
B: Minimum Lot Width 90 feet
C: Maximum Floor Area Ratio (FAR) .20
D: Minimum Landscape Surface Ratio (LSR) .65
Minimum Setbacks:
E: Front or Street Side Lot Line to House 50' from arterial street
35' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 50' from art.
35' from coll. or local
G: Side Lot Line to House or Attached Garage 10 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 25 ft.
I: Rear Lot Line to House or Attached Garage 35 feet
J: Side Lot Line to Accessory Structure 7 feet
K: Rear Lot Line to Accessory Structure 7 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 20 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 4
R: Maximum Area of Accessory Structure: 1,000 square feet

SINGLE-FAMILY DETACHED HOUSE -- 20,000 square foot lot



Section 13W-6-3 (continued)

(h) **Single-Family Detached House 10,500 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

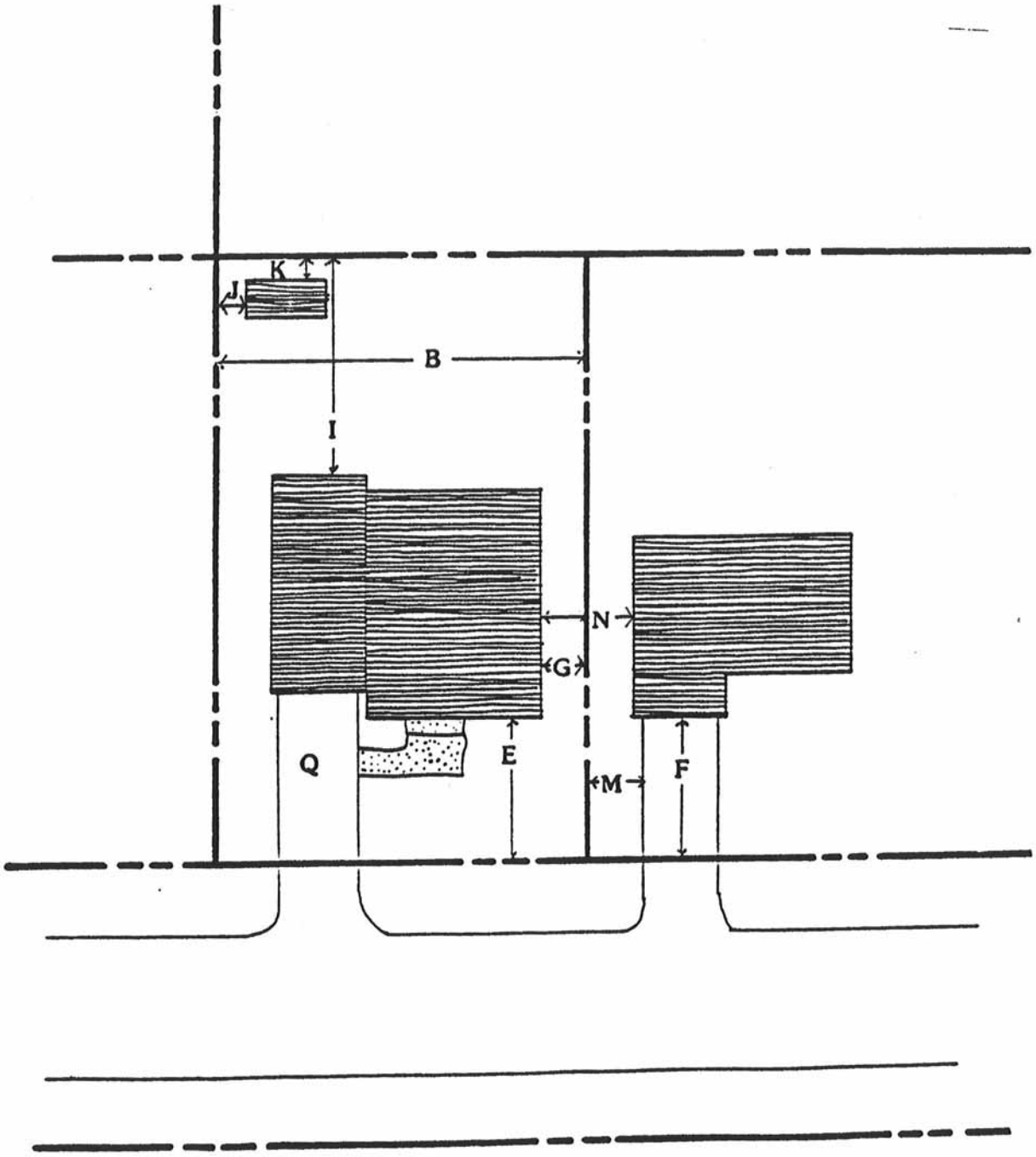
This dwelling unit type may be located as a:

Use Permitted by Right in: (SR-4), (MR-8), (UR-12)
Use " as Conditional Use in: (ER-1)

Bulk Standards

A: Minimum Lot Area 10,500 square feet
B: Minimum Lot Width 80 feet
C: Maximum Floor Area Ratio (FAR) .28
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 30' from arterial street
45' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 30' from art.
45' from coll. or local
G: Side Lot Line to House or Attached Garage 10 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 22 ft.
I: Rear Lot Line to House or Attached Garage 30 feet
J: Side Lot Line to Accessory Structure 5 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 20 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 4
R: Maximum Area of Accessory Structure: 1,000 square feet

SINGLE-FAMILY DETACHED HOUSE -- 10,500 square foot lot



Section 13W-6-3 (continued)

(i) **Single-Family Detached House 9,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

This dwelling unit type may be located as a:

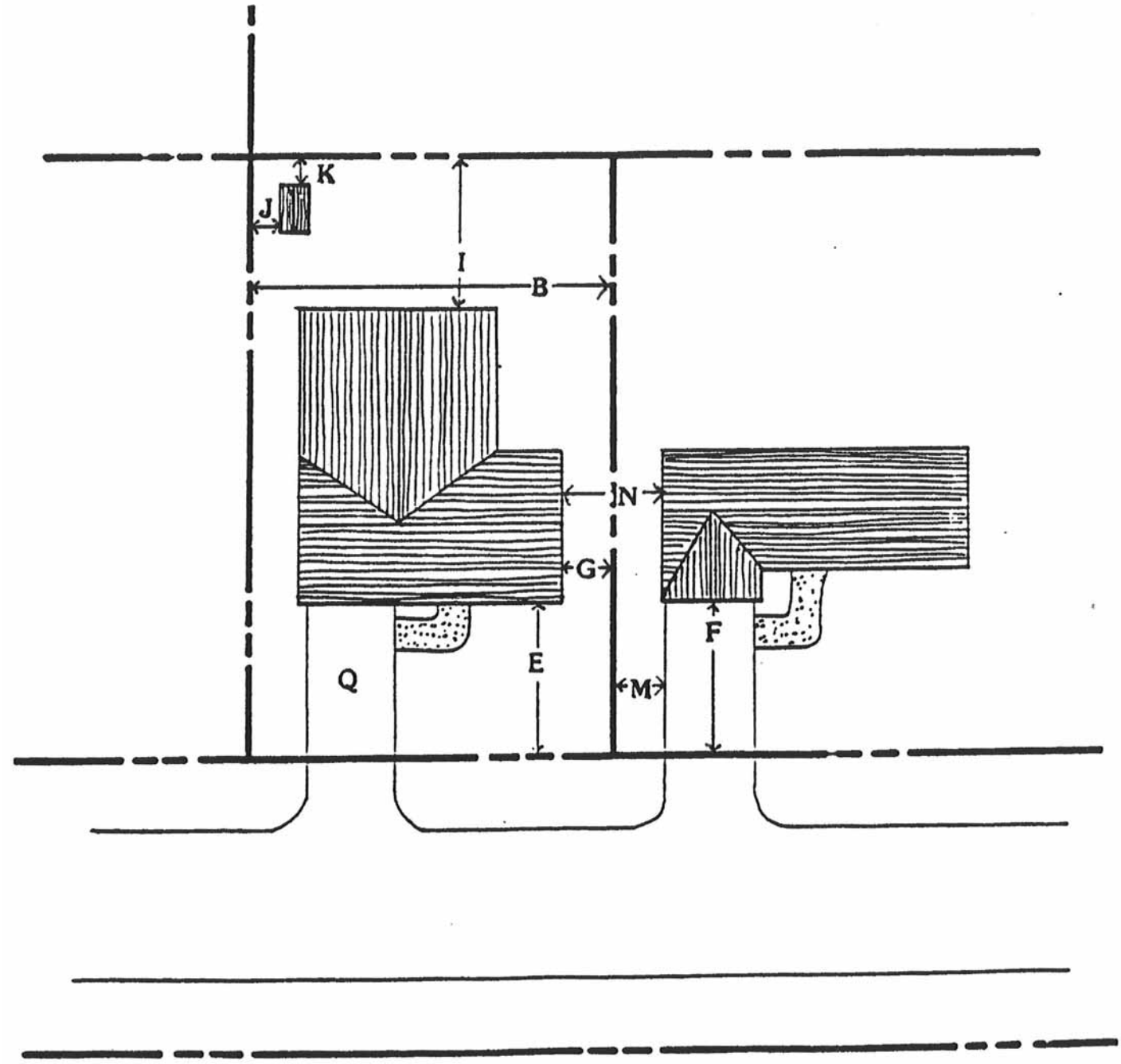
Use Permitted by Right in: (SR-4), (MR-8), (UR-12)

Bulk Standards

A: Minimum Lot Area 9,000 square feet
B: Minimum Lot Width 75 feet
C: Maximum Floor Area Ratio (FAR) .30
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 45' from art.
30' from coll. or local
G: Side Lot Line to House or Attached Garage 10 feet*
H: Total of Both Sides, Lot Lines to House/Attached Garage 20 ft*
I: Rear Lot Line to House or Attached Garage 30 feet
" (with provision of .40 opacity bufferyard which is located along entire rear lot line and along side lot lines from rear building line to rear lot line) (per Section 13W-6-7) 20 feet
J: Side Lot Line to Accessory Structure 5 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 20 feet*
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 3
R: Maximum Area of Accessory Structure: 1,000 square feet

* See Section 13W-6-6.

SINGLE-FAMILY DETACHED HOUSE -- 9,000 square foot lot



Section 13W-6-3 (continued)

(j) **Lot Line House 7,200 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is located on an individual lot or within a building envelope. The dwelling unit may be located with one side abutting a side lot line (with the provision of a 5 foot wide maintenance easement on the adjoining lot). No windows (except clerestory and skylights) or doors may be located on a side of any dwelling unit located less than 5 feet from a lot line (in order to provide a private side yard for the adjoining lot line unit). This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). All dwellings must be located entirely within building pads which are designated on a recorded plat or certified survey map (except for lots of record existing prior to the effective date of this Article). Lot line house units shall be located a minimum of 16 feet from the property boundary of the development (except for lots of record existing prior to the effective date of this Article).

This dwelling unit type may be located as a:
Use Permitted by Right in: (SR-4), (MR-8), (UR-12)

Bulk Standards

A: Minimum Lot Area 7,200 square feet
B: Minimum Lot Width 60 feet
C: Maximum Floor Area Ratio (FAR) .30
D: Minimum Landscape Surface Ratio (LSR) .50

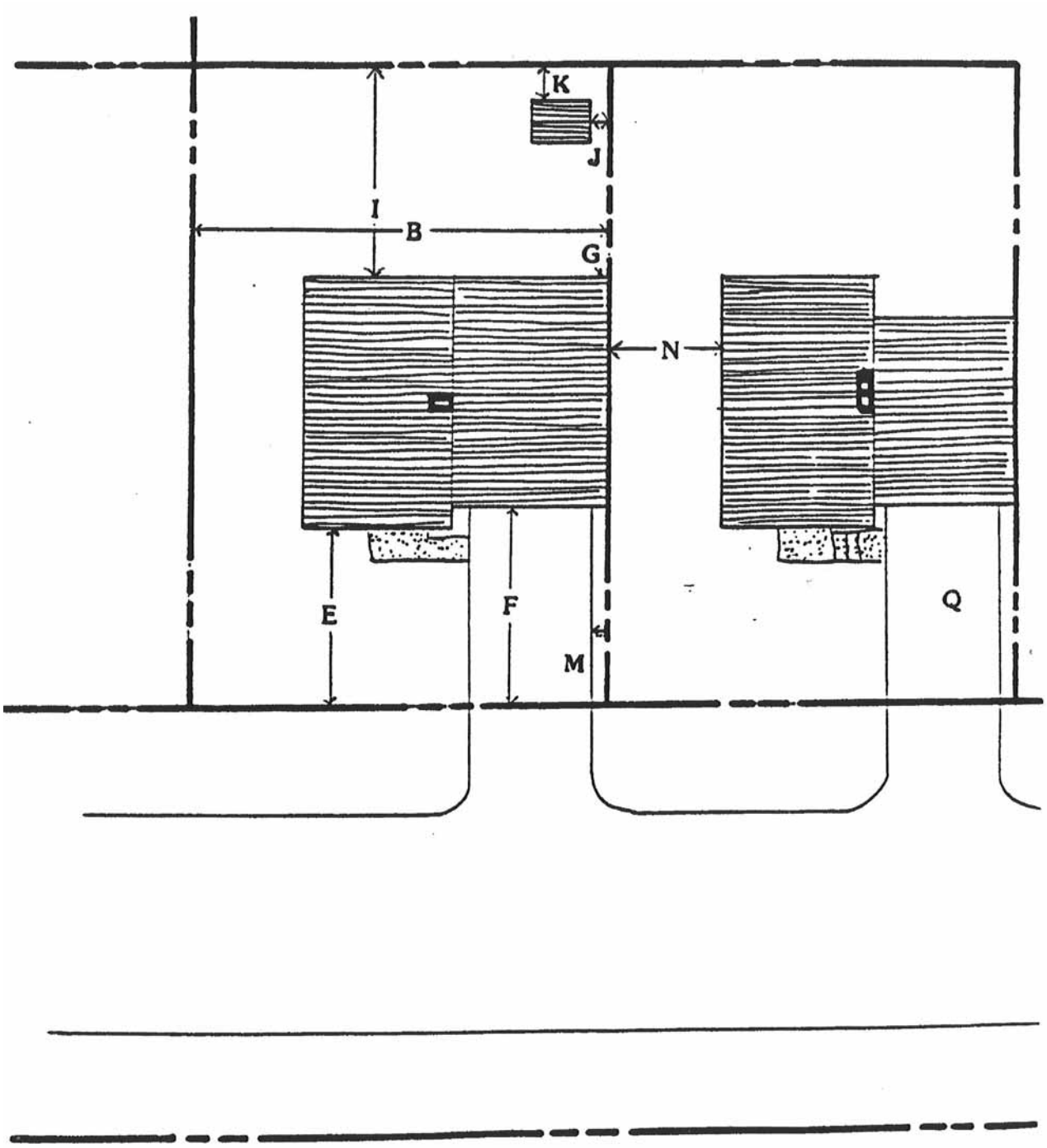
Minimum Setbacks:

E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street 25 feet
F: Front or Street Side Lot Line to Attached Garage 25 feet
G: Side Lot Line to House or Attached Garage 0 feet*
H: Total of Both Sides, Lot Lines to House/Attached Garage 16 ft*
I: Rear Lot Line to House or Attached Garage 30 feet
" (with provision of .40 opacity bufferyard
which is located along entire rear lot line
and along side lot lines from rear building
line to rear lot line) (Per Section 13W-6-7) 20 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 16 feet
M: Minimum Paved Surface Setback 5 feet

N: Minimum Dwelling Unit Separation 16 feet*
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 3
R: Maximum Area of Accessory Structure: 1,000 square feet

* See Section 13W-6-6.

LOT LINE HOUSE -- 7,200 square foot lot



Section 13W-6-3 (continued)

(k) reserved

Reserved

Section 13W-6-3 (continued)

(l) **Twin House 4,500 square foot lot** and
Duplex House 9,000 square foot lot (4,500 per each dwelling unit)

These dwelling unit types consists of a single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which is which is attached on one side to another single-family residence. A minimum one-hour fire rated wall assembly division, separating living areas from the lowest level to flush against the underside of the roof, is required between each dwelling unit. The two residences may or may not be located on individual lots. The Twin House is distinguished from the Duplex House merely by having each unit located on an individual lot or within a building envelope. These dwelling unit types may not be split into additional residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

These dwelling unit types may be located as a:

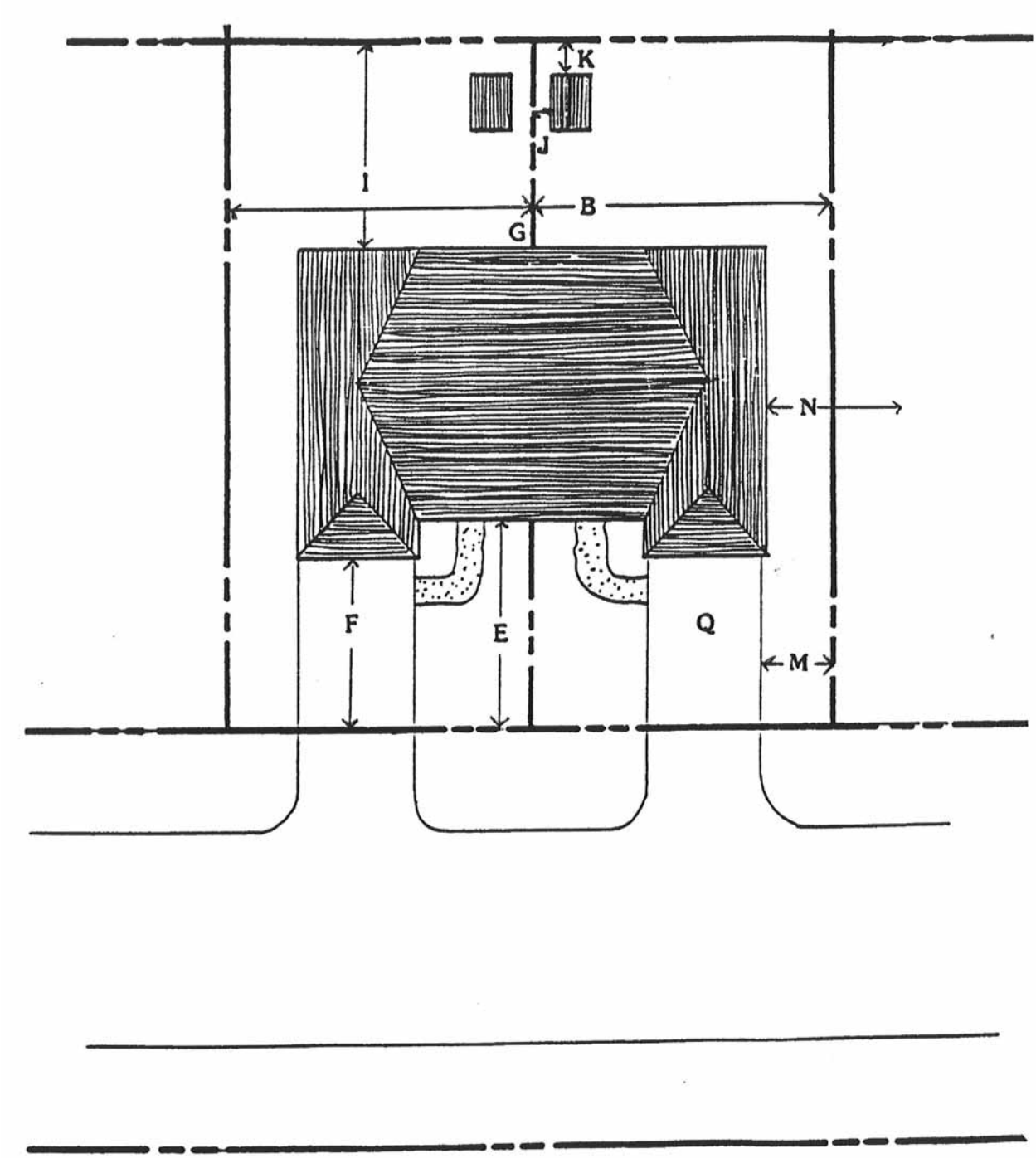
Use Permitted by Right in: (MR-8), (UR-12)
Use " as Conditional Use in: (SR-4)

Bulk Standards

A: Minimum Lot Area 4,500 square feet per dwelling unit
B: Minimum Lot Width 30 feet
C: Maximum Floor Area Ratio (FAR) .40
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 25 feet
F: Front or Street Side Lot Line to Attached Garage 25 feet
G: Side Lot Line to House or Attached Garage 0 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 10 ft*
I: Rear Lot Line to House or Attached Garage 30 feet
" (with provision of .40 opacity bufferyard
which is located along entire rear lot line
and along side lot lines from rear building
line to rear lot line) (Per Section 13W-5-6) 20 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 10 feet
M: Minimum Paved Surface Setback 2 feet
N: Minimum Dwelling Unit Separation (separate buildings) 20 feet*
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required per Dwelling Unit (Includes garage, drives, & all designated parking surfaces): 3

* See Section 13W-6-6.

TWIN HOUSE -- 4,500 square foot lot
and
DUPLEX HOUSE -- 9,000 square foot lot



Section 13W-6-3 (continued)

(m) **Two Flat House 9,000 square foot lot** (4,500 square feet per unit)

This dwelling unit types consist of a single-family residence, which is in complete compliance with the State of Wisconsin One- and Two-Family Dwelling Code (s. 101.60-.66), which has been converted into a two-family residence. The two residences are both located on the same lot or within the same building envelope. This dwelling unit type may not be split into additional residences. Where permitted, this use is a conditional use and must be approved through the procedures of Section 13W-11-5.

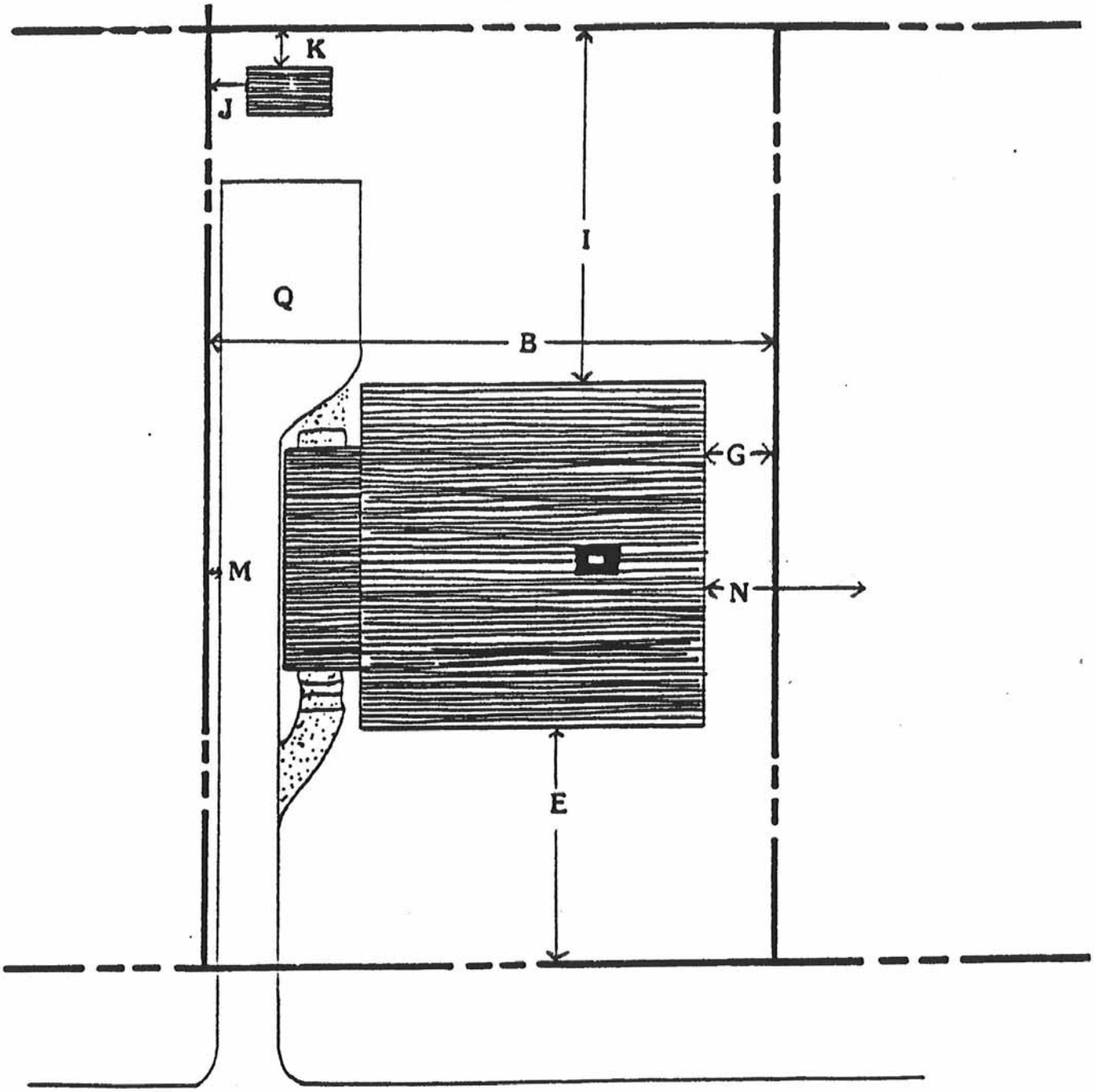
This dwelling unit type may be located as a:

Use Permitted as Conditional Use in: (SR-4), (MR-8), (UR-12)

Bulk Standards

A: Minimum Lot Area 9,000 square feet (4,500 square feet per unit)
B: Minimum Lot Width 75 feet
C: Maximum Floor Area Ratio (FAR) .40
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 30 feet
G: Side Lot Line to House or Attached Garage 10 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 20 ft.
I: Rear Lot Line to House or Attached Garage 30 feet
" (with provision of .40 opacity bufferyard
which is located along entire rear lot line
and along side lot lines from rear building
line to rear lot line) (Per Section 13W-6-7) 20 feet
J: Side Lot Line to Accessory Structure 5 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 2 feet
N: Minimum Dwelling Unit Separation 20 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required per Dwelling
(Includes garage, drives, & all designated parking surfaces): 2.5

TWO-FLAT HOUSE -- 9,000 square foot lot



Section 13W-6-3 (continued)

(n) **Atrium House 3,600 square foot lot**

This dwelling unit types consist of an attached, one-story, single-family residence, which is in complete compliance with the State which has a private, individual access and is located on its own lot or building envelope. This dwelling unit can be considered a one-story townhouse. This dwelling unit type may not be split into additional residences. A minimum one-hour fire rated wall assembly division, separating living areas from the lowest level through the roof, is required between each dwelling unit. Each dwelling unit shall enclose its entire rear yard by a fence which has an opacity of 1.00. The fence shall be a minimum of 6 feet high. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). No more than 6 atrium house dwelling units may be attached per group. All atrium house units within a development shall be located a minimum of 30 feet from the boundary of the development.

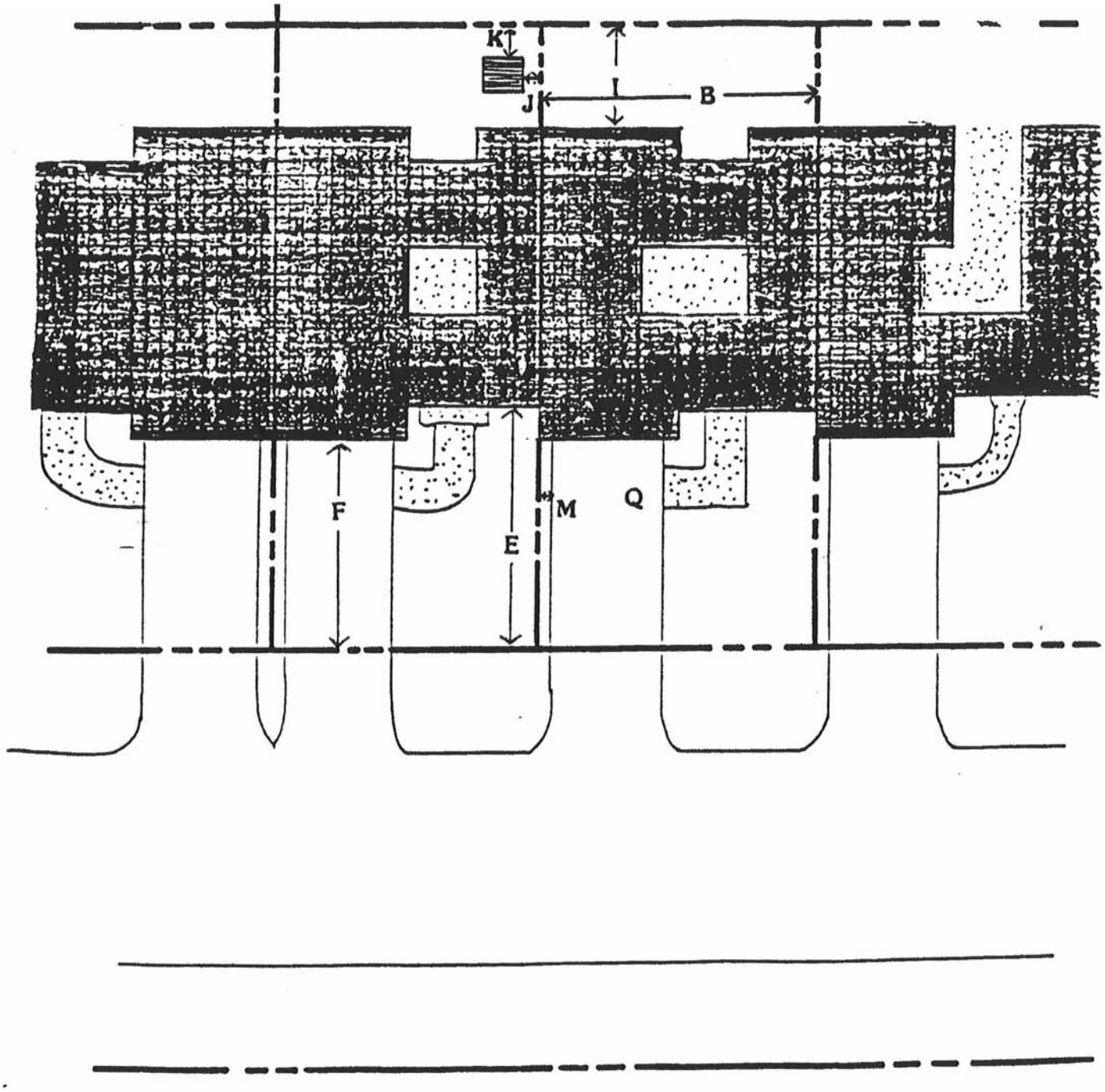
This dwelling unit type may be located as a:

Use Permitted by Right in: (UR-12) in non-group developments
Use " as Conditional Use in: (SR-4) and (MR-8) in all developments;
and (UR-12) in group developments
(See Section 13W-4-8.)

Bulk Standards

A: Minimum Lot Area 3,600 square feet
B: Minimum Lot Width 40 feet
C: Maximum Floor Area Ratio (FAR) .50
D: Minimum Landscape Surface Ratio (LSR) .40
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 20 feet
F: Front or Street Side Lot Line to Attached Garage 20 feet
G: Side Lot Line to House or Attached Garage 0 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 0 ft.
I: Rear Lot Line to House or Attached Garage 15 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 30 feet
M: Minimum Paved Surface Setback 2 feet
N: Minimum Dwelling Unit Separation (separate buildings) 15 feet
O: Maximum Height of Dwelling Unit 18 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 3

ATRIUM HOUSE -- 3,600 square foot lot



Section 13W-6-3 (continued)

(o) **Weak-Link Townhouse 2,800 square foot lot**

This dwelling unit types consist of an attached, one- and two-story, single-family residence which has a private, individual access and is located on its own lot or building envelope. This dwelling unit can be considered a townhouse with both a one-story, and a two-story, components. The one-story side of the unit shall be a minimum of 10 feet wide, or 30% of the lot width, (whichever is greater). This dwelling unit type may not be split into additional residences. A minimum one-hour fire rated wall assembly division, separating living areas from the lowest level through the roof, is required between each dwelling unit. No more than 6 weak-link townhouse dwelling units may be attached per group. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). All weak-link townhouse units within a development shall be located a minimum of 30 feet from the boundary of the development.

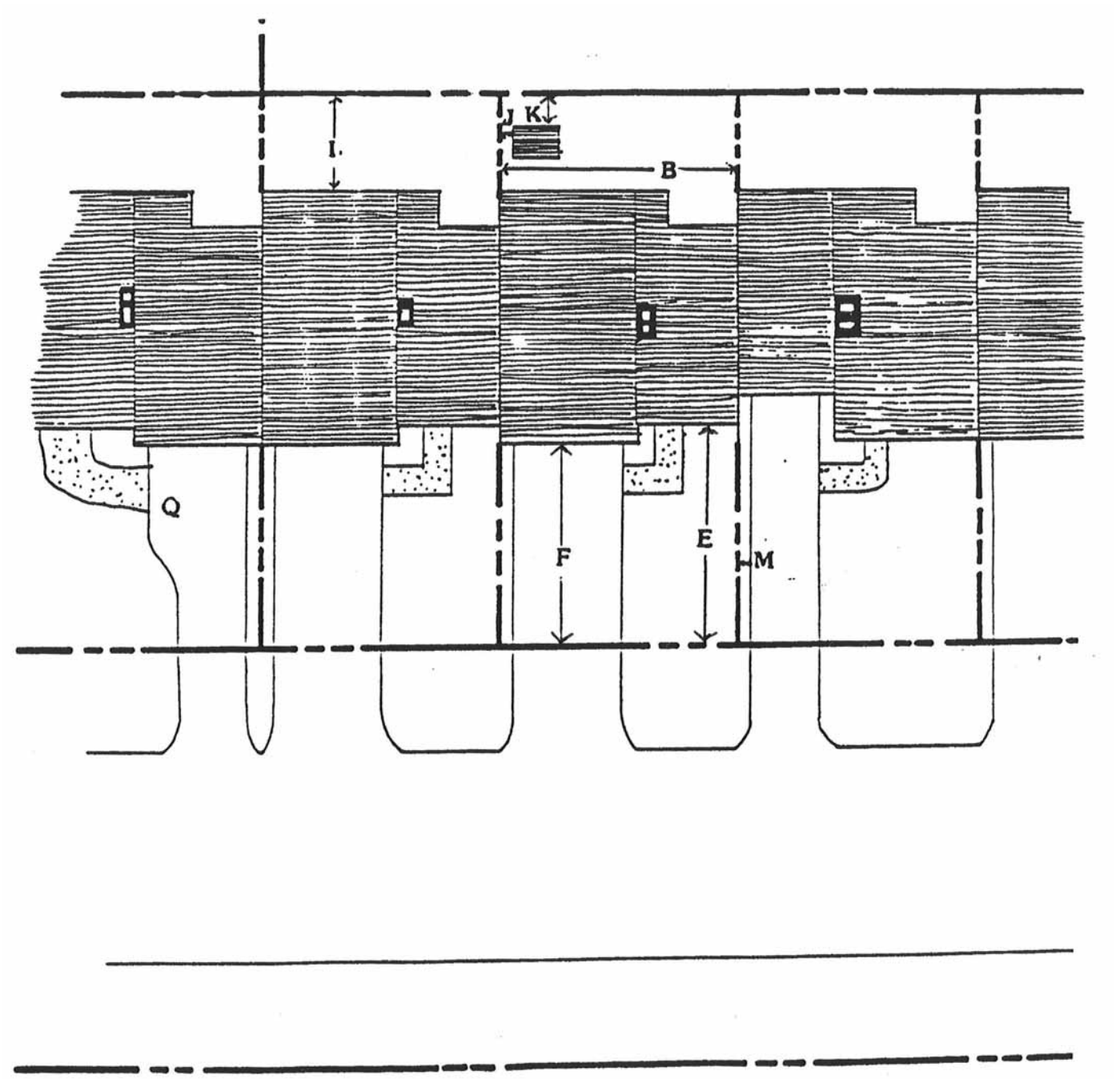
This dwelling unit type may be located as a:

Use Permitted by Right in: (UR-12) in non-group developments
Use " as Conditional Use in: (SR-4) and (MR-8) in all developments;
and (UR-12) in group developments
(See Section 13W-4-8.)

Bulk Standards

A: Minimum Lot Area 2,800 square feet
B: Minimum Lot Width 30 feet
C: Maximum Floor Area Ratio (FAR) .55
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 20 feet
F: Front or Street Side Lot Line to Attached Garage 20 feet
G: Side Lot Line to House or Attached Garage 0 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 0 ft.
I: Rear Lot Line to House or Attached Garage 15 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 30 feet
M: Minimum Paved Surface Setback 2 feet
N: Minimum Dwelling Unit Separation (separate buildings) 20 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 3

WEAK-LINK TOWNHOUSE -- 2,800 square foot lot



Section 13W-6-3 (continued)

(p) **Townhouse 2,400 square foot lot**

This dwelling unit types consist of an attached, two-story, single-family residence which has a private, individual access and is located on its own lot or building envelope. This dwelling unit type may not be split into additional residences. A minimum one-hour fire rated wall assembly division, separating living areas from the lowest level through the roof, is required between each dwelling unit. No more than 8 townhouse dwelling units may be attached per group. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). All townhouse units within a development shall be located a minimum of 30 feet from the boundary of the development.

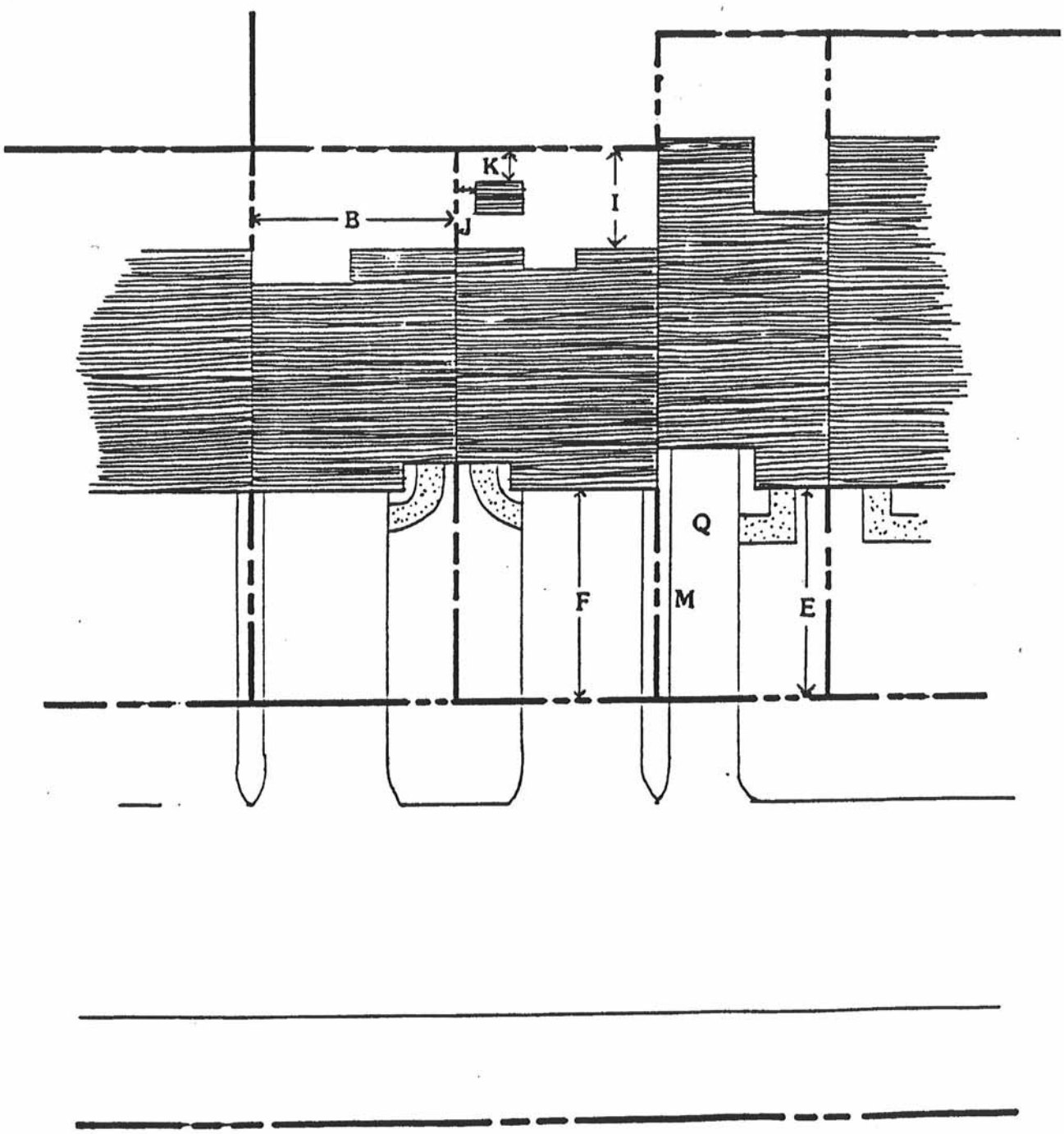
This dwelling unit type may be located as a:

Use Permitted by Right in: (UR-12) in non-group developments
Use " as Conditional Use in: (MR-8) in all developments;
and (UR-12) in group developments
(See Section 13W-4-8.)

Bulk Standards

A: Minimum Lot Area 2,400 square feet
B: Minimum Lot Width 20 feet
C: Maximum Floor Area Ratio (FAR) .60
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 20 feet
F: Front or Street Side Lot Line to Attached Garage 20 feet
G: Side Lot Line to House or Attached Garage 0 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 0 ft.
I: Rear Lot Line to House or Attached Garage 15 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 30 feet
M: Minimum Paved Surface Setback 2 feet
N: Minimum Dwelling Unit Separation (separate buildings) 24 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 3

TOWNHOUSE -- 2,400 square foot lot



Section 13W-6-3 (continued)

(q) **Multiplex (2,000 square feet per dwelling unit)**

This dwelling unit types consist of an attached, multi-family residence which has a private, individual access. A minimum one-hour fire rated wall assembly division, separating living areas from the lowest level through the roof, is required between each dwelling unit. No more than 6 multiplex dwelling units may be attached per group. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). All multiplex units within a development shall be located a minimum of 30 feet from the boundary of the development.

This dwelling unit type may be located as a:

Use Permitted by Right in: (UR-12) in non-group developments
Use " as Conditional Use in: (MR-8) in all developments;
and (UR-12) in group developments
(See Section 13W-4-8.)

Bulk Standards

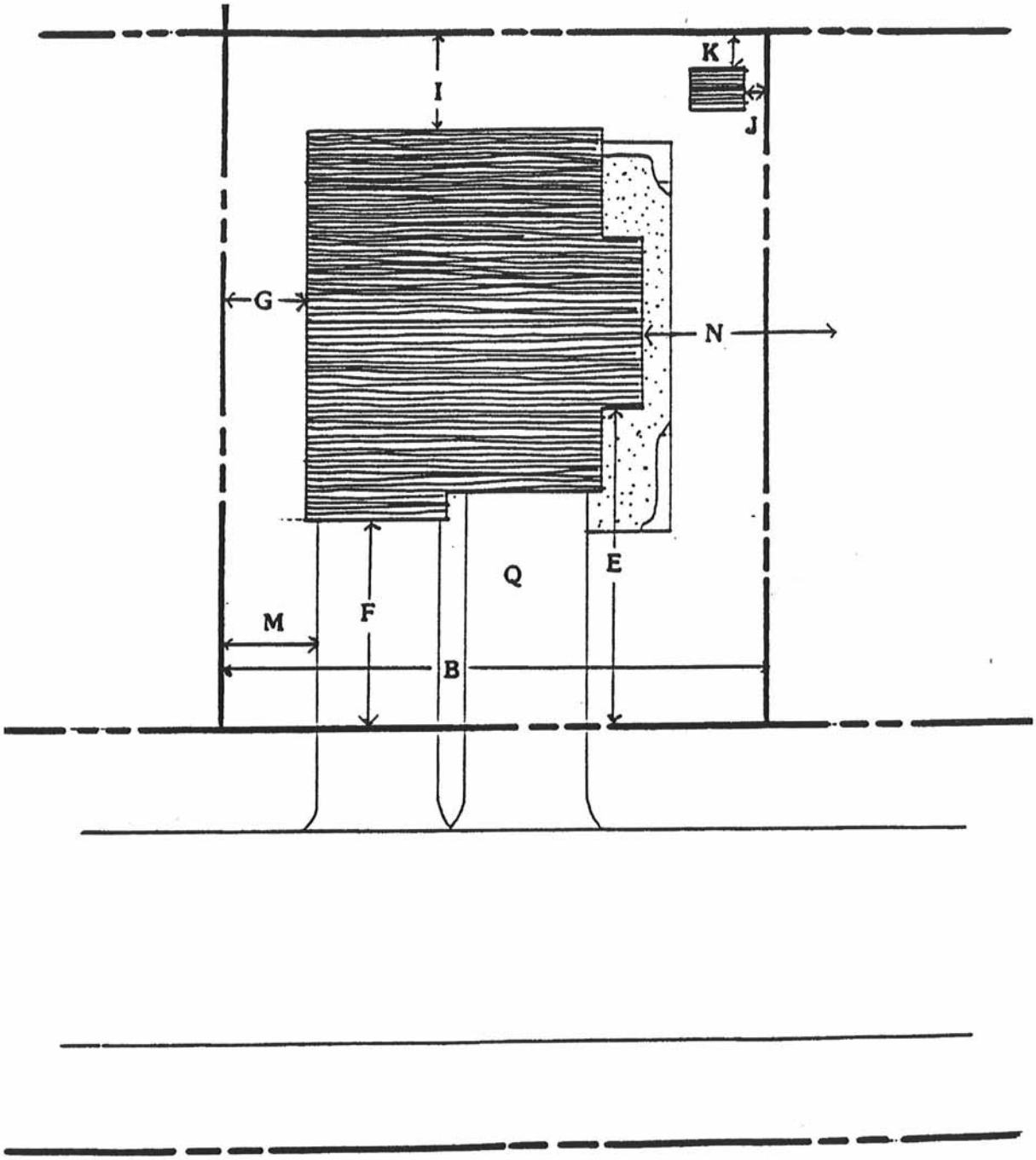
A: Minimum Lot Area (2,000 square feet per dwelling unit)
B: Minimum Lot Width 60 feet
C: Maximum Floor Area Ratio (FAR) .70
D: Minimum Landscape Surface Ratio (LSR) not applicable, see
Minimum Green Space Ratio (GSR) requirement in Section 13W-5-4.

Minimum Setbacks:

E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 20 feet
F: Front or Street Side Lot Line to Attached Garage 20 feet
G: Side Lot Line to House or Attached Garage 12 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 30 ft.
I: Rear Lot Line to House or Attached Garage 15 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 30 feet
M: Minimum Paved Surface Setback 2 feet

N: Minimum Dwelling Unit Separation (separate buildings) 24 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required per Dwelling Unit: (Includes garage & all designated parking surfaces):
Efficiency Unit: 1.5 spaces
One-Bedroom Unit: 2.0 spaces
Two-Bedroom+ Unit: 2.5 spaces

MULTIPLEX -- 2,000 square foot lot



Section 13W-6-3 (continued)

(r) **Apartment (1,400 square feet per dwelling unit)**

This dwelling unit types consist of an attached, multi-family residence which takes access from a shared entrance or hallway. A minimum one-hour fire rated wall assembly division, separating living areas from the lowest level through the roof, is required between each dwelling unit. No more than 30 2-bedroom, 3-bedroom, and/or 4+-bedroom units; or 36 1-bedroom and/or efficiency units may be located in a building. As part of the conditional use requirements for group developments, any development comprised of one or more buildings which contain 13 or more dwelling units shall provide additional site design features such as: underground parking, architectural elements, landscaping, and/or on-site recreational facilities. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). All apartment units within a development shall be located a minimum of 30 feet from the boundary of the development.

This dwelling unit type may be located as a:

Use Permitted by Right in: (UR-12) in non-group developments
Use " as Conditional Use in: (MR-8) in all developments;
and (UR-12) in group developments
(See Section 13W-4-8.)

Bulk Standards

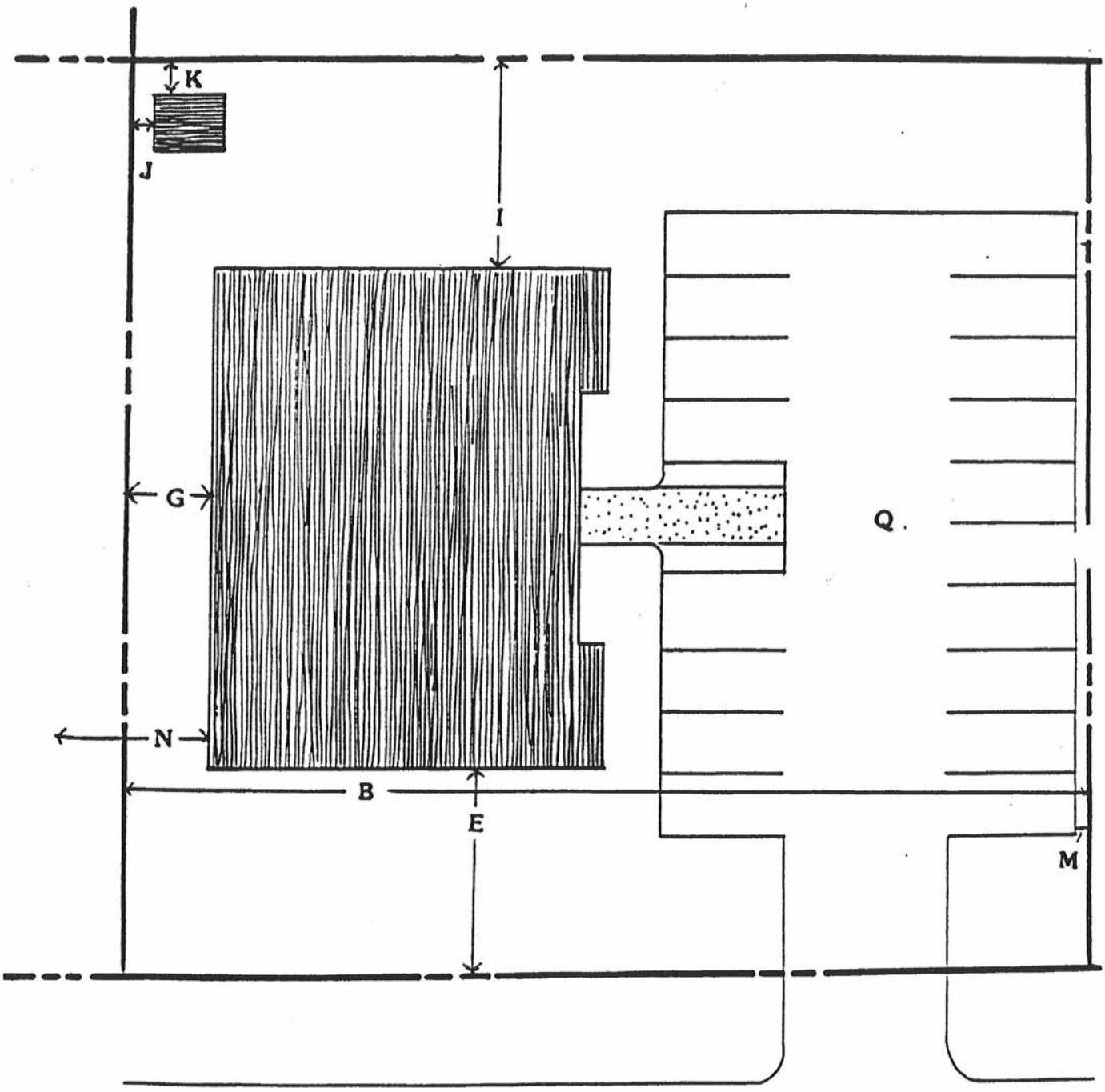
A: Minimum Lot Area (1,400 square feet per dwelling unit)
B: Minimum Lot Width 60 feet
C: Maximum Floor Area Ratio (FAR) .70
D: Minimum Landscape Surface Ratio (LSR) not applicable, see
Minimum Green Space Ratio (GSR) requirement in Section 13W-5-4.

Minimum Setbacks:

E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 20 feet
F: Front or Street Side Lot Line to Attached Garage 20 feet
G: Side Lot Line to House or Attached Garage 12 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 30 ft.
I: Rear Lot Line to House or Attached Garage 15 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 30 feet
M: Minimum Paved Surface Setback 2 feet

N: Minimum Dwelling Unit Separation (separate buildings) 24 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required per Dwelling
Unit: (Includes garage & all designated parking surfaces):
Efficiency Unit: 1.5 spaces
One-Bedroom Unit: 2.0 spaces
Two-Bedroom+ Unit: 2.5 spaces

APARTMENT -- 1,400 square foot lot



Section 13W-6-3 (continued)

(s) **Institutional Residential (800 square feet per dwelling unit)**

This dwelling unit types consist of an attached, multi-family residence which takes access from a shared entrance or hallway. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards). All institutional residential units within a development shall be located a minimum of 30 feet from the boundary of the development. (See also 13W-4-6(a)(6) and 13W-4-6(c)(6) Detailed Land Use Descriptions and Regulations.

This dwelling unit type may be located as a:

Use Permitted as a Conditional Use in: (UR-12), (SO)

Bulk Standards

A: Minimum Lot Area (800 square feet per dwelling unit)
B: Minimum Lot Width 60 feet
C: Maximum Floor Area Ratio (FAR) .70
D: Minimum Landscape Surface Ratio (LSR) not applicable, see
Minimum Green Space Ratio (GSR) requirement in Section 13W-5-4.

Minimum Setbacks:

E: Front or Street Side Lot Line to House 45' from arterial street
30' from coll. or local
F: Front or Street Side Lot Line to Attached Garage 20 feet
G: Side Lot Line to House or Attached Garage 12 feet
H: Total of Both Sides, Lot Lines to House/Attached Garage 30 ft.
I: Rear Lot Line to House or Attached Garage 15 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback 30 feet
M: Minimum Paved Surface Setback 5 feet

N: Minimum Dwelling Unit Separation (separate buildings) 24 feet
O: Maximum Height of Dwelling Unit 40 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage & all designated parking surfaces):
Varies, see Section 13W-9-4 for detailed parking requirements.

Section 13W-6-3 (continued)

(t) **Manufactured Home 5,000 square foot lot**

This dwelling unit type consists of a fully detached, single-family residence, which is in complete compliance with the State of Wisconsin Regulations regarding manufactured homes (s. 101.90-96), which is located on an individual lot or within a building envelope. The Manufactured Home is distinguished by its construction, otherwise, it closely resembles a conventional single-family detached dwelling unit. This dwelling unit type may not be split into 2 or more residences. All units must be located within a development which conforms to the requirements of Section 13W-5-4 (Residential Development Standards).

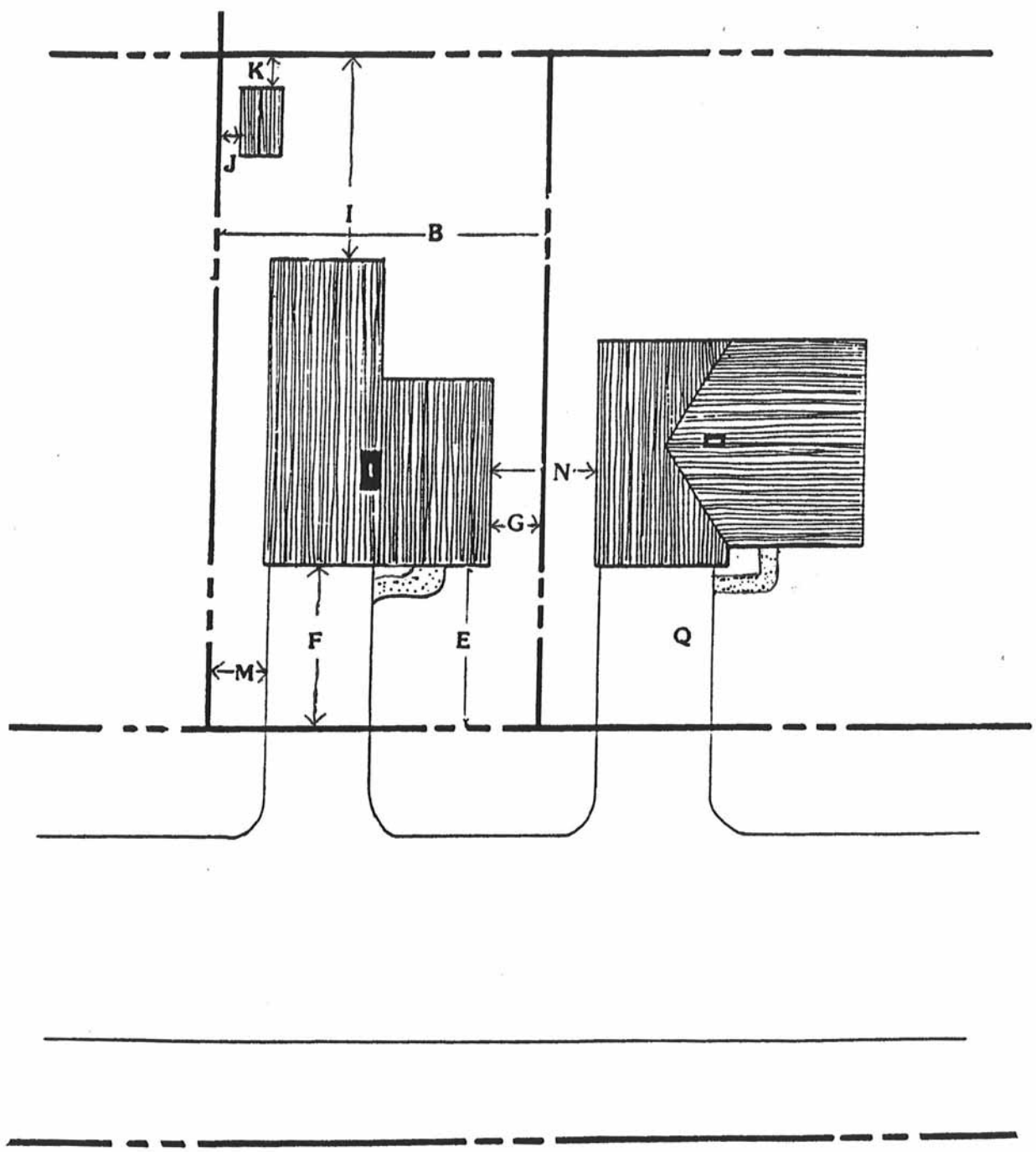
This dwelling unit type may be located as a:

Use Permitted as Conditional Use in: (MR-8)

Bulk Standards

A: Minimum Lot Area 5,000 square feet
B: Minimum Lot Width 50 feet
C: Maximum Floor Area Ratio (FAR) .25
D: Minimum Landscape Surface Ratio (LSR) .50
Minimum Setbacks:
E: Front or Street Side Lot Line to House 45' from arterial street
30' from collector "
" with direct access to local street (Per Sec. 13W-6-5) 25 feet
F: Front or Street Side Lot Line to Garage 20 feet
G: Side Lot Line to House or Garage 8 feet
H: Total of Both Sides, Lot Lines to House/Garage 16 ft.
I: Rear Lot Line to House or Garage 30 feet
" (with provision of .40 opacity bufferyard
which is located along entire rear lot line
and along side lot lines from rear building
line to rear lot line) (Per Section 13W-6-7) 20 feet
J: Side Lot Line to Accessory Structure 3 feet
K: Rear Lot Line to Accessory Structure 5 feet
L: Peripheral Setback not applicable
M: Minimum Paved Surface Setback 5 feet
N: Minimum Dwelling Unit Separation 16 feet
O: Maximum Height of Dwelling Unit 35 feet
P: Maximum Height of Accessory Structure 15 feet
Q: Minimum Number of Off-Street Parking Spaces Required on the Lot
(Includes garage, drives, & all designated parking surfaces): 3

MANUFACTURED HOME -- 5,000 square foot lot



Section 13W-6-4 Nonresidential Bulk Standards

All nonresidential lots created under the provisions of this Article shall comply with the standards of this Section. These standards are related to the specific zoning district and development option used. Table 13W-4-3 and Table 13W-5-5 relate each use with each zoning district and development option.

The following table, 13W-6-4, presents the standards for nonresidential bulk regulations.

Rationale: The maximum permitted height restriction of 40 feet is based upon the fire-fighting equipment available to the Fire Department as of the effective date of this Article. Should fire fighting equipment be made available to effectively fight fires in structures over 40 feet tall, this maximum limit could be raised.

Prior to such time, if a structure is proposed to exceed this maximum (under the provisions of Section 13W-6-9), it should be equipped with internal fire fighting mechanisms which are approved by the Fire Department as part of the required Conditional Use review process.

(Table 13W-6-4 is found on the following page.)

TABLE 13W-6-4 NONRESIDENTIAL BULK STANDARDS

ZONING DISTRICT	DEVELOPMENT OPTION (or MAX. NO. OF FLOORS) (#F)	MIN. LOT WIDTH (feet)	MINIMUM SETBACKS FRONT OR STREET (feet)	SIDE FROM RES. (feet)	SIDE FROM NON-RES. (feet)	REAR FROM RES. (feet)	REAR FROM NON-RES. (feet)	PAVED AREA (feet)	MIN. BLDG. SEP. (feet)	MAX. BLDG. HEIGHT (feet)
AGRICULTURAL COMMERCIAL (AC)	1	150	50	35	25	35	25	5*	30	40
	2	150	50	40	30	40	30	5*	35	40
AGRICULTURAL (AG-35ac)	cultivation/ husbandry	200	10	10	10	10	10	5*	30	35
	all other uses	200	100	100	50	100	50	5*	30	35
C'SIDE RESIDENTIAL (CR-5ac)	1	200	100	100	50	100	50	5*	30	35
ESTATE RESIDENTIAL (ER-1)	1	200	80	80	40	80	40	5*	30	35
SUBURBAN RESIDENTIAL (SR-4)	1	200	70	70	35	70	35	5*	30	35
MIXED RESIDENTIAL (MR-8)	1	150	60	60	30	60	30	5*	30	35
	2	150	60	70	35	70	35	5*	35	35
URBAN RESIDENTIAL (UR-12)	1	130	50	50	25	50	25	5*	30	35
	2	130	50	60	30	60	30	5*	35	35
SUBURBAN OFFICE (SO)	1	150	50	35	25	35	25	5*	30	40
	2	150	50	40	30	40	30	5*	35	40
	3	150	50	45	35	45	35	5*	40	40
	4	150	50	50	40	50	40	5*	45	40
NEIGHBORHOOD COMMERCIAL (NC)	1	50	25	25	10	20	10	5*	30	40
	2	50	25	30	15	25	15	5*	35	40
SUBURBAN COMMERCIAL (SC)	1	150	50	35	25	35	25	5*	30	40
	2	150	50	40	30	40	30	5*	35	40
	3	150	50	45	35	45	35	5*	40	40
	4	150	50	50	35	50	40	5*	45	40
URBAN COMMERCIAL (UC)	1	50	15	12	0	10	10	5*	20	40
	2	50	15	15	0	15	15	5*	25	40
	3	50	15	20	0	20	20	5*	30	40
	4	50	15	25	0	25	25	5*	35	40
CENTRAL COMMERCIAL (CC)	1	0	0	12	0	10	10	0*	10	40
	2	0	0	12	0	10	10	0*	10	40
	3	0	0	15	0	15	10	0*	10	40
	4	0	0	20	0	20	10	0*	10	40
SUBURBAN INDUSTRIAL (SI)	1	150	25	30	20	30	20	5*	30	40
	2	150	25	35	20	35	20	5*	35	40
	3	150	25	40	20	40	20	5*	40	40
	4	150	25	45	20	45	20	5*	45	40
URBAN INDUSTRIAL (UI)	1	50	20	15	0	20	10	5*	20	40
	2	50	20	20	0	25	15	5*	20	40
	3	50	20	25	0	30	20	5*	20	40
	4	50	20	30	0	35	25	5*	20	40
HEAVY INDUSTRIAL (HI)	1	50	20	15	0	20	10	5*	10	40
	2+	50	20	20	0	25	15	5*	10	40

* Refer to Section 13W-8-5 regarding minimum paved area setbacks to accommodate required street frontage landscaping.

Section 13W-6-5 Front Yard or Street Yard Setback Adjustment

The required front yard setback for any use may be reduced for a principal structure on any lot where more than 50 percent of the same type of principal structure on the same block face or street face do not meet the required front yard setback. In such instances, the required front yard setback for the proposed structure shall be the average of all same type principal structures on said block face or street face.

Section 13W-6-6 Side Yard Setback Adjustment

The minimum required side yard setback listed for Single-Family Detached Houses of 9,000 square feet and Lot Line Houses (Sections 13W-6-3(i) and (j), respectively) are hereby reduced for lots of record existing as of the effective date of this Article. For both dwelling unit types, required minimum side yards shall be 5 feet for one-story dwellings and 8 feet for two-story dwellings; and for both dwelling unit types, required total side yards shall be 13 feet for one-story dwellings and 16 feet for two-story dwellings.

Section 13W-6-7 Rear Yard Setback Reduction

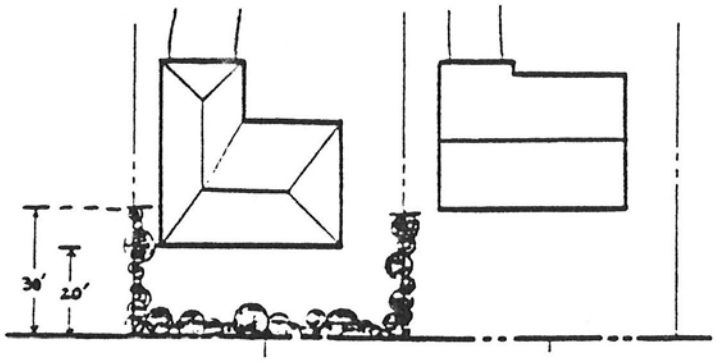
Certain residential dwelling unit types may qualify for a reduction in the required rear yard setback with the provision of a bufferyard to mitigate any potential adverse effects of the rear yard reduction.

(a) Said reduction shall permit the required rear yard setback to be reduced from 30 feet to 20 feet (from the rear lot line to the nearest point of the dwelling unit).

(b) These units shall include the: Single-Family Detached 9,000 square foot lot House, Lot Line House, Village House, Twin House, Duplex House, and Two-Flat House.

(c) Prior to acquiring a Building Permit which indicates said reduction, the Petitioner shall file an agreement with the Recorder of Deeds which requires the installation and continuous maintenance of said bufferyard. Said agreement shall specifically state that such requirements shall apply to any current or future owner or assign of the subject property.

(d) Said bufferyard shall have a minimu opacity of .30, and shall be located along the entire length of the rear lot line, and along both side lot lines a distance of 30 feet from the rear lot line toward the front lot line.



Section 13W-6-8 Intrusions into Required Yards

The minimum setback requirements of Sections 13W-6-3 and 13W-6-4 establish the minimum required yards for all uses, except those exempted by the provisions of this Section.

(a) No yard shall be reduced in area or dimension so as to make such yard less than the minimum required by this Article. If an existing yard is less than the minimum required, it shall not be reduced further, except where exempted by the provisions of this Section.

(b) No required yard or lot area allocated to satisfy the minimum yard or lot area requirements for one building or structure shall be used to satisfy the minimum yard or lot area requirement for another building or structure.

(c) In instances where the required bufferyard width (per Chapter 13W-8) exceeds the minimum required setback width, the minimum required bufferyard width shall prevail. Absolutely no intrusions of a building or structure are permitted within the required bufferyard. (Refer to Section 13W-8-9.)

(d) **Permitted Intrusions Into Required Yards**

The following intrusions by buildings and structures are permitted into the specified required yards:

(1) **Permitted Intrusions Into Required Front or Street Yards**:

a. Chimneys, flues, sills, pilasters, lintels, ornamental features, cornices, eaves, and gutters for residential buildings; provided they do not extend more than two and one-half feet into the required yard.

b. Yard lights, ornamental lights, and nameplate signs for residential lots (provided the direct source of light is not visible from a public right-of-way or any adjacent residential property); provided they do not locate closer than five feet from the front or street property line.

c. Terraces, steps, uncovered porches, decks, stoops, or similar appurtenances to residential buildings which do not extend above the floor level of the adjacent building entrance; provided they do not locate closer than 15 feet from any street right-of-way.

d. Fences on residential or nonresidential lots which do not exceed four feet in height; provided they do not locate closer than two feet to any street right-of-way. Permitted fence types shall comply with the provisions of Section 13W-8-9(d)(2).

(2) **Permitted Intrusions Into Required Rear or Side Yards:**

a. Chimneys, flues, sills, pilasters, lintels, ornamental features, cornices, eaves, and gutters for residential buildings; provided they do not extend more than two and one-half feet into the required yard.

b. Overhanging bays (on residential buildings) which do not extend more than two feet into the required yard and which do not contain a gross floor area of more than twenty square feet.

c. Fences may locate on the property line. Permitted fence types shall comply with the provisions of Sections 13W-8-9(d)(2) and 13W-9-20.

d. Fire escapes (on residential buildings) which do not extend more than three feet into the required yard.

(3) **Permitted Intrusions Into Required Rear Yards:**

a. Terraces, steps, uncovered porches, decks, stoops, or similar appurtenances to residential buildings which do not extend more than three feet above grade; provided they do not locate closer than eight feet to the rear lot line.

b. Balconies or similar appurtenances to residential buildings which extend more than three feet above grade; provided they do not extend more than six feet into the required rear yard.

(e) **All Front Yard and Street Yard Areas**

With the exception of fences, no accessory structures shall be permitted within any portion of a front yard or street yard.

Section 13W-6-9 Exceptions to Maximum Height Regulations

(a) **Permitted Exceptions to Maximum Height Regulations**

(1) The maximum permitted number of floors listed for nonresidential uses in Section 13W-5-5 and the maximum height regulations listed for residential uses and residential accessory structures in Section 13W-6-3, and for nonresidential uses and nonresidential accessory structures in Section 13W-6-4, are the maximum permitted number of floors and maximum heights for all buildings and structures, except those exempted by this Section, below.

(2) The following are permitted to exceed the maximum height regulations by 25%, within any district where permitted: church spires, belfries, cupolas and domes which do not contain useable space, public monuments, water towers, fire and hose towers, flag poles, chimneys, smokestacks, cooling towers, and elevator penthouses.

(3) Accessory non-residential farm structures may exceed the maximum height of this Article provided that a minimum building setback from any property line equal to, or greater than, the height of the structure is provided.

(4) Any building or structure not otherwise accounted for by (2), above, may exceed said maximum number of floor regulations and/or said maximum height regulations with the granting of a Conditional Use Permit which specifically states the maximum permitted number of floors and/or maximum permitted height of the proposed building or structure.

(b) **Required Procedure for Exceeding Maximum Height Regulations**

In order to secure permission to exceed the maximum height regulations of Sections 13W-6-3 and/or 13W-6-4, and/or the maximum number of floors regulations of Section 13W-5-5, per (a)(3) above; the petitioner shall apply for and be granted a Conditional Use Permit per the standards and procedures of Section 13W-11-5.

Section 13W-6-10 Nonconforming Lot Regulations

(a) Upon and after the effective date of this Article, no lot shall be created which does not meet the Minimum Lot Area (MLA) requirements of Sections 13W-5-4 or 13W-5-5 or which does not meet the lot dimension requirements of Sections 13W-6-3 or 13W-6-4.

(b) A lot in a plat or certified survey map as to which the Town certifies in writing that such a plat or map and all supporting documentation are complete pursuant to the requirements of Chapters 4 and 5 of the Town Land Division and Subdivision Ordinance and as to which the City so certifies per the requirements of Sections 14-1-2 to 14-1-6 and 14-1-10 of Title 14, Land Division Regulations of the City Municipal Code prior to the effective date of this Article, and a lot of record existing upon the effective date of this Article in a Residential or Agricultural District (see Section 13W-3-2), which does not meet the Minimum Lot Area (MLA) requirements of this Sections 13W-5-4 or 13W-5-5 or which does not meet the lot dimension requirements of Sections 13W-6-3 or 13W-6-4 may be utilized for a detached single-family dwelling unit, provided that said lot is a minimum of 20,000 sq. ft. in an unsewered area and 9,000 sq. ft. in a sewered area. Said lot shall not be more intensively developed (with multi-family or nonresidential uses) unless combined with one or more abutting lots (or portions thereof) so as to create a lot which meets the requirements of this Article.

Section 13W-6-11 Nonconforming Structure and Building Regulations

(a) Any structure or building lawfully existing upon the effective date of this Article may be continued at the size and in a manner of operation existing upon such date, except as hereafter specified.

(b) Nothing in this Article shall preclude the Building Inspector from remedial or enforcement actions when said structure or building is declared unsafe.

(c) When any lawful nonconforming structure or building in any district is modified so as to be in conformance with the provisions of this Article, any future modification of said structure or building shall be in conformance with the provisions of this Article.

(d) Whenever a lawful nonconforming structure or building has been damaged by fire, flood, wind, explosion, earthquake, war, riot, unlawful act, or Act of God, it may be reconstructed and used as before if it be reconstructed within one year after such calamity, unless the damage to said structure or building equals or exceeds 50% of its assessed value. In such cases, the reconstruction shall be limited to uses permitted by the provisions of this Article (unless the ability to re-establish a nonconforming use is specifically granted by Council).

(e) Normal maintenance of a nonconforming structure or building is permitted, including necessary nonstructural repairs and incidental alterations which do not extend, enlarge, or intensify the nonconformity.

(f) Alterations may be made to a building containing lawful nonconforming residential units, provided such alterations do not increase the number of dwelling units or the bulk of the building, except that a conforming garage may be added if none previously existed.

(g) A legal, nonconforming garage may be enlarged or replaced provided the following requirements are met:

(1) That the proposed garage replacement or addition does not encroach farther into required setback(s) than the current legal, nonconforming structure.

(2) That the proposed garage replacement or addition does not locate closer to an existing residence on an adjacent parcel than the the sum of the required garage setback (on the subject property) and the required house setback (on said adjacent parcel).

(3) That exterior building materials and building styles match that of the original garage or the residence.

(4) And that precautions (determined on a case-by-case basis by the Building Inspector) are taken to reduce the possibility of fire damage to nearby structures.

(h) Any structure or building for which a building permit has been lawfully granted prior to the effective date of this Article, which will become nonconforming under the provisions of this Article or amendments thereto, may be completed in accordance with the approved plans, provided construction is started within 180 calendar days of the effective date of this Article, and provided that construction is completed within 730 calendar days of the effective date of this Article or amendments thereto. Said structure or building shall thereafter be a legal nonconforming structure or building.

(i) A variance for any and all requirements of this Chapter is hereby automatically granted to all nonconforming residential dwellings in their configuration existing as of the effective date of this Article. However, after the effective date of this Article, such structures shall not be permitted to enlarge, expand or extend without bringing the enlargement, expansion or extension into compliance with the provisions of the Chapter unless a variance is granted by the Board of Zoning Appeals per the requirements of Section 13W-11-9.

Rationale: The "blanket variance" provision of (i), above, is intended to eliminate the continued classification and/or creation of certain nonconforming residential structures within the jurisdiction of this Article. This provision addresses two different situations. First: prior to adoption of this ordinance a number of residential structures may have been approved which did not meet setback requirements. Second: this Article requires greater side yard setback requirements for certain residential lot sizes than did previous regulations for similar sized lots. The adoption of the provisions of (i), above, ensure that residential structures approved prior to the adoption of this Article do not encounter difficulty in transferring ownership because they would otherwise be considered nonconforming uses. This "blanket variance" is not available for nonresidential structures.